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OFFICIAL REPORT

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THE
PARLIAMENT OF THE REPUBLIC
OF GHANA

FIRST MEETING, 2026

Thursday, 12th February, 2026

*The House met at the Chamber,
Parliament House, at 2:23 p.m.*

[HON FIRST DEPUTY SPEAKER,
MR BERNARD AHIAFOR, IN THE
CHAIR]

[PRAYERS]

Mr First Deputy Speaker: Hon Members, the item numbered 5, *Correction of Votes and Proceedings* and the *Official Report*.

**VOTES AND PROCEEDINGS AND
THE OFFICIAL REPORT**

Mr First Deputy Speaker: Hon Members, we correct the *Votes and Proceedings* of Wednesday, 11th February, 2026.

Page 1...9—

Yes, Hon Member?

Ing Surv Maxwell Kwame Lukutor: Mr Speaker on the page numbered 8, the item numbered iv, which reads, “Staff and students of Abor Senior High School from Keta Constituency, led by the Headmaster, Seth Agbeyume.” He is a reverend and his name “Agbeyume” is also not spelt correctly. It should be written as “Rev Seth Agbeyome”.

Then, the item numbered b (i), the name as spelt “Yawuli” should be spelt as “Yawlui”.

Mr First Deputy Speaker: Table, please take note.

Page 10—

Yes, Prof Kingsley Nyarko?

Prof Kingsley Nyarko: Mr Speaker, on the page numbered 10, the item numbered 9, the Question numbered 377, line three which reads, “...since the Feeder Department” should be replaced with the term “Department of Feeder Roads”. So, if Table can take note. I do not know how it was captured in the *Order Paper*, but we have the Department of Feeder Roads. But what is written here is “Feeder Department” and I do not know what that means.

Mr First Deputy Speaker: Very well, that is an omission. Thank you for the observation.

Prof K. Nyarko: The second one has to do with the Question numbered 476. The Hon Member is not here because he needs to effect his own change. But there is a town written here as “Assieninpong...”. The spelling is different from what I know. But I do not doubt because he is the Member of Parliament there. The Table should cross-check or maybe find out from him. Because it is spelt as Assiemnimpong”. But I would yield to the Table.

Thank you.

Mr First Deputy Speaker: Very well. Table, cross-check how it is captured in the Question numbered accordingly. Yes, Hon Member?

Mr Frank Afriyie: Mr Speaker, with respect, may I take you to the page numbered 8? With the greatest humility—

Mr First Deputy Speaker: Draw the Table's attention to it. I would not go back.

Mr Afriyie: I was on my feet anyway.

Mr First Deputy Speaker: No, Ing Surv has taken me to the page numbered 8. I went to page 8 and came back to the page numbered 10. So, let us avoid the back and forth. You can draw the attention of the Table to the Question number that you have corrections on.

Mr First Deputy Speaker: Table, take note.

Page 11...12?

Hon Members, the *Votes and Proceedings* of Wednesday, 11th February, 2026, as presented and corrected is hereby accepted as the true record of proceedings.

Mr First Deputy Speaker: Yes, available Leader?

Mr Richard Acheampong: Mr Speaker, thank you very much for the opportunity.

Mr Speaker, we have the Minister for Transport with us. So, if you can vary the Order of Business and move to the item numbered 7—

Mr First Deputy Speaker: Very well. Yes, available Minority Leader?

Mr Jerry Ahmed Shaib: Mr Speaker, we are not in opposition.

Mr First Deputy Speaker: Very well. Hon Members, these Questions have been scheduled for the Minister for Transport. The Minister for Transport is here to respond to the Questions appropriately. May I ask him to take his designated seat as I call on Members to pose the Questions.

Minister for Transport, you are welcome. We then move to the item numbered 7 and Question time starts with the Question numbered 542 standing in the name of Mr Kwabena Boateng, Member of Parliament for Ejisu. You have the floor.

Dr Fred Kyei Asamoah: Mr Speaker, I come under Order 83 to seek your leave with the permission of the Hon Member to ask the Question on his behalf.

Mr First Deputy Speaker: The leave will be granted pursuant to authority given to you by the Questioner. Do you have his authority?

Dr F. K. Asamoah: Yes, I do.

Mr First Deputy Speaker: Hon Members, it is not a matter of coming under the appropriate Order. You need

the authority of the person in order for you to ask the Question.

Dr F. K. Asamoah: Yes, Mr Speaker. He has given me the authority to do that.

Mr First Deputy Speaker: Yes, please do.

ORAL ANSWERS TO QUESTIONS

MINISTRY OF TRANSPORT

Progress of Work on the Boankra Inland Port

Dr Fred Kyei Asamoah *on behalf of Mr Kwabena Boateng (NPP — Ejisu):* Mr Speaker, I beg to ask the Minister for Transport the progress of work on the Boankra Inland Port in the Ejisu Constituency.

Minister for Transport (Mr Joseph Nikpe Bukari) (MP): Thank you, Mr Speaker.

Mr Speaker, the Boankra Integrated Logistics Terminal is being developed to serve as an inland dry port, thus extending Ghana's seaport services at Tema and Takoradi to the middle and northern sections of the country as well as serve as a transit bay for landlocked countries.

Currently, essential ground and structural works have advanced in various stages with the erection of a bonded warehouse, construction of major roads and other drainage systems, a container freight station, a truck parking area, construction of fire station,

water and electricity supply and distribution facilities, a container yard area which are all part of the Phase 1 are progressing steadily and at 83 per cent complete.

Mr Speaker, phase two is expected to include, among others, external boundary routes work, construction of seaway lines, transit facilities, rail fire stations and other civil works. The overall physical progress of the project stands at 50.54 per cent complete.

2:33 p.m.

Mr First Deputy Speaker: Any supplementary question?

Dr F. K. Asamoah: Mr Speaker, I would like to follow up to the Hon Minister. He mentioned that 50.54 per cent of the work is being done. What is the major challenge? Is it funding? If it is funding, is it the Government of Ghana (GoG) or what is the source of the funding?

Mr First Deputy Speaker: What exactly is your question? Are you asking a question based on the challenge or on the source of funding?

Dr F. K. Asamoah: I wanted to ask for the funding source, whether it is private funding or from GoG?

Mr First Deputy Speaker: Hon Minister, what is the source of funding of the project?

Mr Bukari: Mr Speaker, the Boankra project started for a very long time till

date, and the questioner wanted to know the progress of work, which I have just stated what we have done so far. The contractor is on site and work is progressing steadily.

Mr First Deputy Speaker: Hon Members, that is why we normally ask that, if you ask a specific Question, and you come to ask a supplementary question, which relates to another thing? It is problematic. Dr Fred Kyei Asamoah asked the status of the work, and now he is asking the source of funding. If there is a specific question on the source of funding, the Hon Minister would have made the necessary findings, and come and provide the answer. Is there any supplementary question?

Dr F. K. Asamoah: Mr Speaker, in as much as I agree with you, I want to follow up, because that was part of the reason why I am following up, because of the percentage that was stated. But I want to ask—

Mr First Deputy Speaker: But the question specifically says, the progress of work on the Boankra Inland Port in Ejisu Constituency. So, the Hon Minister is just coming here to tell you about the progress of work. Anything else cannot emanate from this particular question.

Dr F. K. Asamoah: Mr Speaker, I want to know why the delay in the implementation, because he said Phase 1 is 83 per cent, then the overall progress is 50 per cent. So, what is the percentage for Phase 2? You stated that of Phase 1, but he did not state that of Phase 2. So, what is causing the delay?

Mr Bukari: Mr Speaker, I stated that the Phase 1 work is progressing, and the level of progress is 83 per cent, and Phase 2 is 50.54 per cent.

Mr First Deputy Speaker: Any other supplementary?

Dr F. K. Asamoah: Mr Speaker, I would want to know if the Hon Minister will give us some timelines for the completion of this project.

Mr First Deputy Speaker: Hon Minister, can you give timelines?

Mr Bukari: Mr Speaker, to give timelines now will be very difficult for me, but all that I can say is that the Ministry and Government is making everything possible to assist the contractor to continue with work.

Mr First Deputy Speaker: Yes, Hon John Darko?

Mr John Darko: Hon Minister, I want to find out whether in the 2026 Budget, there was provision for the Boankra Inland Project?

Mr First Deputy Speaker: Please ask a specific question.

Mr Darko: Mr Speaker, it is flowing from this.

Mr First Deputy Speaker: How does it flow from the Hon Minister coming to brief the House about the progress of work on Boankra? So, if you ask a

specific question, the Hon Minister will check the Budget and answer that question for you.

Mr Darko: Mr Speaker, he is giving us a progress report.

Mr First Deputy Speaker: Please be guided by the rules.

Mr Darko: Mr Speaker, yes, and that is why I think it is a fair question. If he can provide that—

Mr First Deputy Speaker: Please, it is not a fair question. I ruled. You cannot ask the Hon Minister to—

Mr Darko: He is the Minister for Transport. He knows the Budget—

Mr First Deputy Speaker: Hon John Darko, listen to me. You asked the question that the Hon Minister should come and brief you on the progress of work on Boankra, then you are asking a supplementary question on a Budget.

Mr Darko: Mr Speaker, no. As part of the progress of work, the Hon Minister is aware of how much his Ministry has allocated to the Boankra project. He should be able to give an answer.

Mr First Deputy Speaker: That is why I am asking you to ask a specific question. How does that question relate to the progress of work? Look at the Question that the Hon Minister has been called upon to answer.

Mr Darko: Mr Speaker, I do not know how this is so different from the progress of work.

Mr First Deputy Speaker: Look at the Question that the Hon Minister is called upon to come and answer. Hon Member, if you ask the Hon Minister to come and answer a Question on the progress of work, and then you come here asking supplementary about the source of funding, the two do not relate.

Yes, Hon Michael Baafi Okyere?

Mr Michael Baafi Okyere: Mr Speaker, thank you. Hon Minister, I would like to know whether Ashanti Port Services is still part of the project.

Mr First Deputy Speaker: How does that relate to the progress?

Mr Okyere: Mr Speaker, with all due respect, I just want to elicit very important information that is very relevant to the question.

Mr First Deputy Speaker: Hon Members, let us look at the rules. Standing Order 89(1). Let me read it;

“As soon as a Question is answered, any Member beginning with the Member who asked the Question may, without notice, ask a Supplementary Question for further clarification of any matter of fact on the answer but a Supplementary Question shall not introduce a matter not included in the original question.”

So, the original Question in this case is for the Hon Minister to answer the

progress of work on Boankra project, and which he has come to answer by giving you the status of the work. One is 83 per cent and one is 54 per cent. That is all. So, if you have any specific question which does not relate to the status, then you are contravening Standing Order 89. That is the basis for which I am overruling those supplementary questions. So please, let your question relate to the progress of the Boankra projects.

Yes, Hon Nana Osei-Adjei you have the floor.

2:43 p.m.

Nana Osei-Adjei: Mr Speaker, in his response, the Hon Minister said Phase 1 is 83 per cent complete. Total completion is 50.54 per cent. I want to find out from the Hon Minister the progress report on Phase 2.

Mr First Deputy Speaker: Hon Minister, though you have said it, you may repeat your answer for him.

Mr Bukari: Mr Speaker, I stated that Phase 1 is progressing steadily and at 83 per cent complete. Phase 2 is expected to include, among others, external boundary roadworks, construction of sewer lines, transit facilities, referral stations, and other civil works. The overall physical progress of the project stands at 50.54 per cent.

Mr First Deputy Speaker: Yes, Hon Vincent Ekow Assafuah?

Mr Vincent Ekow Assafuah: Thank you very much, Mr Speaker.

Mr Speaker, even though the question that was asked by my Colleague has not been answered—

Mr First Deputy Speaker: Hon Member, you are to ask a supplementary question.

Mr Assafuah: I am going ahead to ask my supplementary question. Mr Speaker, today is a Thursday, it is actually the day that I was born so, respectfully, try and give us some respite with respect to our questions.

The Hon Minister has indicated that Phase 1 is 83 per cent complete. Per the document that has been shared to us, the overall physical progress is also 50.54 per cent complete. Now, per the contract, it is expected that it is supposed to be operational by the end of 2025 or 2026. My question is, is the Boankra Inland Port going to be operational by the end of 2026?

Thank you.

Mr First Deputy Speaker: Yes, Hon Minister?

Mr Bukari: Mr Speaker, as at the time of reporting to Parliament, this is the stage of the Boankra Integrated Logistics Inland Port. I assure the Hon Member that we are going to be working with the concessionaire to ensure that we give the necessary support for him to be able to deliver. So, all that we will need to do is for us to give our support to the

concessionaire, and it is my hope that he will be able to discharge his work as expected.

Thank you, Mr Speaker.

Mr Shaib — *rose* —

Mr First Deputy Speaker: Yes, Hon Habib Iddrisu? Very well. Depending upon the way you are seated, I want to give you the last bite.

Alhaji Habib Iddrisu: Mr Speaker, just a clarification from the Hon Minister based on his Answer. The 50.54 per cent in his answer, is it for Phase 1 and Phase 2, or, Phase 1 is 83 per cent and Phase 2 is 50.54 per cent? Or, when you say overall—

Mr First Deputy Speaker: Yes, Hon Minister?

Mr Bukari: Mr Speaker, this is very clear for us to all understand. Boankra Inland Port is a concessionaire that we are undertaking. And I indicated that for Phase 2, work is progressing steadily and is at 83 per cent. That is the Phase 2, and I said that the Phase 2 includes a lot of activities. Putting all together, the progress of work stands at 50.54 per cent complete.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Yes, Hon Jerry Ahmed Shaib?

Hon Habib Iddrisu, you have a further supplementary?

Alhaji Habib Iddrisu: Yes, Mr Speaker.

Mr First Deputy Speaker: Please do.

Alhaji Habib Iddrisu: Mr Speaker, the Hon Minister has provided us the percentage of Phase 1. Then you have provided us the overall percentage.
[Interruption]

Mr First Deputy Speaker: Hon Habib Iddrisu, you have the floor.

Alhaji Habib Iddrisu: Mr Speaker, the Hon Minister said Phase 1 is 83 per cent, and he said overall is 50.54 per cent. What is the percentage of Phase 2 that will now give us the overall?

Mr First Deputy Speaker: Yes, Hon Minister?

Mr Bukari: Mr Speaker, I did not get the question very well. If the Hon Member can—

Mr First Deputy Speaker: Very well. Hon Habib Iddrisu, you may repeat your question. I think you asked, what is the percentage of Phase 2?

Alhaji Habib Iddrisu: Mr Speaker, I am saying that in his answer, he provided 83 per cent for Phase 1, and he is now saying at the concluding statement that the overall physical progress of the project stands at 50.54 per cent. So, I am asking, what is the percentage of Phase 2 for us to get the overall?

Mr First Deputy Speaker: Yes, Hon Minister?

Mr Bukari: Mr Speaker, work is progressing, and clearly, the Phase 1—
[Interruption] Please.

Mr First Deputy Speaker: Hon Members, can we listen to the Minister?

The Phase 1 is 83 per cent complete. But the Phase 2 has a lot ongoing, and we are saying that the overall of Phase 1 and Phase 2 put together, the total percentage of work is 50.54 per cent.

Mr First Deputy Speaker: Hon Habib Iddrisu, you have no further supplementary question.

Yes, Hon Jerry Shaib, you have the floor. Hon Habib Iddrisu, you are entitled to two supplementary questions which you have asked.

Alhaji Habib Iddrisu: Mr Speaker, I want to draw your attention to Order 89(3). Mr Speaker, you know I am your Friend, so I am protected under Order 89(3). And 89(3) says that:

“Any other Member may be allowed to ask not more than two supplementary questions”.

So, Mr Speaker, the ‘may’ means you have that discretion, and I am your Friend.

Mr First Deputy Speaker: So, I am exercising the discretion to say that you have no further supplementary question to ask. So how does this Order help you to ask more than two supplementary questions?

Yes, Hon Shaib?

Mr Jerry Ahmed Shaib: Mr Speaker, I want to ask a follow-up question to my Colleague’s question.

So, what it means is that we have Phase 1, which is 83 per cent, and then the overall is 50.54 per cent. But we do not have Phase 2. Is that the case? And how did the Hon Minister arrive at 50.54 per cent if we do not have Phase 2?

Mr First Deputy Speaker: Yes, Hon Minister?

Mr Bukari: Mr Speaker, the answer I gave might not be that inclusive of Phase 2 and Phase 1. However, I am stating that work is ongoing steadily in Phase 1. But the overall percentage of work at the Boankra Integrated Inland Port is 50.54 per cent. Meaning that Phase 2 has not actually been factored into it. But the overall progress of work is at 50.52 per cent. And so, the clear percentage of work at the Boankra Inland Port as a whole is 50.54 per cent.

Mr First Deputy Speaker: Thank you very much, Hon Minister.

Yes, Hon Shaib?

Mr Shaib: So, Mr Speaker, may I know from the Hon Minister, if funding is affecting the progress of work generally for this Boankra project? And if it is—

Mr First Deputy Speaker: Hon Jerry Ahmed, how is the issue of funding

flowing from the Answer given and the Question?

Mr Shaib: The progress of this project is steadily retarding. Is it as a result of funding? And if funding is the problem, how does the Hon Minister intend to get funding?

Mr First Deputy Speaker: Did the Minister say so in his Answer? Supplementary question is to flow from the Question or the Answer given by the Minister. The question is accordingly overruled.

Mr Shaib: Mr Speaker, is the Hon Minister able to tell us why the progress of work is stalling?

Mr First Deputy Speaker: Well, Hon Minister?

Mr Bukari: Mr Speaker, even though work is not progressing as expected, I have not said that work has stalled. I am saying that work is progressing steadily. And it is our belief that we will work to support the concessionaire to continue with work. Work has not stalled.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Thank you very much.

Yes, Hon Majority Leader?

Mr Mahama Ayariga: Mr Speaker, the Minister stated in his Answer that Phase 2 is expected to include, among others, external boundary roads work, construction of sewer lines, transit

facilities, reefer station, and other civil works. So, this is what Phase 2 is expected to include. The question is, did the Minister evaluate the entirety of the work that encompasses Phase 2 as a percentage of the overall project?

2:53 p.m.

Mr First Deputy Speaker: Yes, Hon Minister, you have the floor.

Hon Habib, why are you up?

Alhaji Habib Iddrisu: Mr Speaker, I am coming under Order 88(8), which states that “Where a Question has been asked and answered, no debate on it shall be permitted.” The question the Majority Leader asked is going to generate debate in the answer the Minister will provide because these are similar questions that we asked and the Speaker overruled us.

So, Mr Speaker, if you allow the Majority Leader’s question to stand, it will generate further debate on this matter. The question has been asked and answered.

Mr First Deputy Speaker: Well, Hon Habib, I do not see anything debatable about this particular question. I see the Majority Leader in asking the question, quoted from the Minister’s Answer. That is why I allowed that particular question.

So, Hon Minister, you have the floor.

Mr Bukari: Mr Speaker, rightly so.

I stated that Phase 1 is at 83 per cent and work is expected of Phase 1 to

include the roads, the boundary, the water, and the fire stations. So definitely, the overall total is 50.54 per cent, indicating that these are the works that are expected to be done at Phase 2.

I thank you, Mr Speaker.

Mr First Deputy Speaker: Hon Members, let us move to the Question numbered 639, standing in the name of Prof Kingsley Nyarko, Member of Parliament for Kwadaso.

Measures to Ensure the Airworthiness of our Domestic Commercial Aircraft

Prof Kingsley Nyarko (NPP—Kwadaso): Mr Speaker, I beg to ask the Minister for Transport the measures the Ministry has put in place to ensure the airworthiness of our domestic commercial aircraft and the safety of the crew and passengers.

Mr Bukari: Mr Speaker, the Ministry, through its agency, the Ghana Civil Aviation Authority (GCAA), has established a robust, multi-layered and proactive safety oversight system to ensure the highest standards for flight safety and security of all domestic commercial operations.

Key Measures to ensure Airworthiness and flight safety include:

- Legal & Regulatory Framework – Ghana Civil Aviation Act 2024 (Act 1120)
- The Ghana Civil Aviation Act, 2024 (Act 1120), provides the main legal

basis for regulating civil aviation in Ghana.

- To complement the Act, GCAA issues Flight Standards Directives, which lay out detailed requirements for certification, maintenance, inspection, continuing airworthiness and record-keeping.
- Certification and Ongoing Airworthiness oversight — Ghana Civil Aviation Directives Part 5 and Part 6.
- Through its Airworthiness framework, GCAA ensures the following:
 - An aircraft has a valid Certificate of Airworthiness before it is used for commercial operations. The Standard Certificate is only issued after thorough inspection, confirming that the aircraft conforms to the approved type design and is in a safe condition for operation.
 - Aircraft is regularly maintained according to approved maintenance programmes.
 - Any major repair or modification complies with airworthiness requirements.
 - Airworthiness Certificates are valid for a specified period. A standard certificate is valid for one year and must be renewed to ensure regular re-evaluation.
 - Personnel Licensing and Oversight - Ghana Civil Aviation Directives Part 2

- Under the Ghana Civil Aviation Directives (GCADs), the GCAA licenses all personnel involved in flight operations, such as pilots, cabin crew, flight and ground engineers, air traffic controllers, maintenance staff, etc. This ensures that only trained, qualified and approved personnel are allowed to operate aircraft, conduct maintenance and provide air navigation services, which is critical for safety and airworthiness.
- Through the Approved Comprehensive National Surveillance Program, the GCAA engages in continuous monitoring of operators to assess compliance and performance. This proactive approach identifies safety risks early, allowing for timely interventions.

Technical Guidance, Tools and Resources: - Ghana Civil Aviation Act 2024 (Act 1120) Sections 6-10 The GCAA provides clear technical guidance and training to ensure very high qualification and continuous professional development for all Aviation Safety Inspectors and other technical personnel in order to maintain high safety standards.

Thank you, Mr Speaker.

Prof K. Nyarko: Mr Speaker, the Question has been extensively addressed and I am grateful for that. However, I would like to find out from the Minister to what extent the ministry ensures that all these regulatory and legal

frameworks and other interventions are complied with.

Mr Bukari: Mr Speaker, the Ghana Civil Aviation Act, 2024 Act 1122 governs the activities of Civil Aviation. And the aviation sector is such a critical sector that every country abides by the regulations of the International Civil Aviation Organisation (ICAO). And so, no government or ministry has any other option than to abide by it to ensure the safety and security of our aircraft, the passengers, and the crew members.

Prof K. Nyarko: Mr Speaker, if we look critically at the Question, it was about how to ensure the airworthiness of our domestic commercial aircraft and the safety of the crew and passengers. Will it be appropriate to liaise with the Ghana Civil Aviation Authority to have some form of periodic or regular education programmes targeting passengers regarding what they should be doing regarding safety issues when they are about to board or when they are on the aircraft? Thank you.

Mr First Deputy Speaker: Well, I see this to be a suggestion rather than a question. It is a suggestion that you are making to the Minister to ensure that the Ghana Civil Aviation Authority carries out an educational exercise.

Prof K. Nyarko: Mr Speaker, you are right, but his opinion might suggest otherwise. He may agree with me or not. That is why I am putting this question.

Mr First Deputy Speaker: Then put it in a way that he should be able to agree

or not to agree. Because the way you put the question is a suggestion to the Minister, which you are entitled to do as a Member of Parliament.

Prof K. Nyarko: Mr Speaker, I would like to ask the Minister if it is right or appropriate to have some training regime between his Ministry and the Ghana Civil Aviation Authority to educate passengers on the matter of risk and safety. Thank you.

Mr First Deputy Speaker: We have not taken inspiration from what the Speaker said the other time. If you ask a Question this way, the Hon Minister will come and say “yes” or “no”, and that ends it.

Hon Minister, you have the floor

3:03 p.m.

Mr Bukari: Mr Speaker, yes—*[Laughter]* But Security and safety at all airports is a shared responsibility, and it is important that both the Government and the Aviation Authority will link up to educate our people as to how they will perform when they are on an aircraft. That is why when you enter any aircraft, there is some education before it takes off. So, it is a laudable idea, and I believe that the Ghana Civil Aviation Authority will be celebrating its 40th anniversary, and it is part of its programme to do public sensitisation on security and safety at our airports.

Thank you.

Prof K. Nyarko: Mr Speaker, I thank the Hon Minister for vindicating my Question because Mr Speaker wanted to just kill my Question, but at least his Answer has thrown more light on what they want to do. So, I am grateful to for—

Mr First Deputy Speaker: Is that a supplementary question?

Prof K. Nyarko: I am just praising him for—

Mr First Deputy Speaker: Kindly resume your seat. *[Laughter]*

Yes, Hon Vincent Assafuah?

Mr Vincent Ekow Assafuah: Mr Speaker, on page 40 of the Answer from the Hon Minister, he indicates that, and I read:

“To complement the Act, GCAA issues Flight Standards Directives, which lays out detailed requirements for certification, maintenance, inspection, continuing airworthiness and record-keeping”

I would want to find out from the Hon Minister the last time such a directive was given, and in the absence of any industry player observing those directives, what are the punitive measures that are meted out for such industry players?

Mr First Deputy Speaker: Yes, Hon Minister?

Mr Bukari: Mr Speaker, aviation security and safety, as I earlier stated, is very crucial to everybody. The GCAA understands that its work to a larger extent depends on the kind of security and safety it provides. So, these directives are given at periodic times for the airline owners to ensure that their maintenance culture is kept up to date, to ensure that the kind of crew they use understand what to do in terms of emergencies to save situations.

So, Mr Speaker, these are periodic things that are carried out, but as to which date or month, I will need another Question for me to come and tell him periodically, how long it takes for airworthiness directives to be issued.

Mr First Deputy Speaker: Yes, Hon John Darko?

Mr Darko: Mr Speaker, in his Answer, he mentioned that they have a proactive approach to identify safety risks. Would he be able to share with this Chamber or the people of Ghana, the safety risks he has identified in his last checks, and what were those safety risks identified?

Mr Bukari: Mr Speaker, I must say that the GCAA is very skilled and very careful of the work they do daily on daily basis, and before they allow any aircraft to take off, they would have gone through all their checks, and with the compliance of all the airline owners, I have not noticed any of such incidents.

Mr First Deputy Speaker: Yes, Hon Asamoah?

Dr F. K. Asamoah: Mr Speaker, during the Answer by the Hon Minister, he stated four key measures that the Ministry, through the GCAA is using to ensure the highest standard of safety, which is highest standards for flight safety and security of all domestic commercial operations.

I would like to ask the Hon Minister, in the implementation of these four key activities, what have been some of the challenges for the local markets and how he has resolved them?

Mr First Deputy Speaker: Hon Member, you can ask a specific question, and he will come with the challenges.

Dr Asamoah: The question I am asking is emanating from the Answer from the Hon Minister.

Mr First Deputy Speaker: Look at the Question. The Question is on the measures that are put in place, and the Minister, in his Answer, has stated the four measures that they are putting in place. So, if you want to know, in putting up these measures, the challenges that are faced, I believe you should ask a specific question. You know Order 89 will not allow you to do what you want to do. The rules are there to guide all of us.

Hon Members, this rule is to safeguard a situation where Hon Ministers will be ambushed when answering Questions. He is a Minister, but in coming to answer Questions in Parliament, he must relate it to the GCAA. So, if there is a question on a specific challenge relating to the

GCAA, in order to come and answer this question, he will pose it to them, and if they have any challenge, the Hon Minister will be briefed accordingly.

So, the question is kindly overruled.

Yes, Hon Habib Iddrisu?

Alhaji Habib Iddrisu: Mr Speaker, I would like to find out from the Hon Minister that to ensure the safety of the crew and passengers, if the domestic commercial aircraft, for example, for cars, normally we do not import more than 10 years old into the country. Is there any age limit to the kind of aircraft they should use for safety purposes in the country?

Mr First Deputy Speaker: Yes, Hon Minister?

Mr Bukari: Mr Speaker, aircraft normally is not dependent on their age limit, which will cause airworthiness issues. It is about how they are maintained and how they remain airworthy.

So, Mr Speaker, I do not see anything relating to age as to how the aircraft has operated for a long time to cause accidents. However, the GCAA, on a continuous basis, gives directives that will ensure safety and ensure that they are maintained, licenced and all personnel working within the aviation industry are licenced to be able to fit in the Sector.

I thank you, Mr Speaker.

Alhaji Habib Iddrisu: Mr Speaker, I did not get the Hon Minister quite right in the aspect of whether there is age or not.

Mr First Deputy Speaker: He said in airworthiness, age is not a factor. It depends on how the aircraft is maintained. You probably did not listen to the Hon Minister.

Alhaji Habib Iddrisu: So, Mr Speaker, is it the case that even a 100-year-old aircraft can be allowed?

Mr First Deputy Speaker: That is not what the Hon Minister said.

Alhaji Habib Iddrisu: Mr Speaker, if he said age does not matter—

Mr First Deputy Speaker: If 100 years is airworthiness, then that is it.

Alhaji Habib Iddrisu: Mr Speaker, with respect, when I premised my question, normally even—

Mr First Deputy Speaker: Hon Habib Iddrisu, there is something we should know. It is not the answer that you are expecting from the Hon Minister, it is the answer that is given by the Hon Minister. You may disagree with the answer given by the Hon Minister, but that is the answer that the Minister has given.

So, the Hon Minister, in answering, never mentioned any 100 years. So, if you are making that particular assumption, then it is up to you.

3:13 p.m.

Hon Members, we have come to the end of Questions slated for the Minister for Transport. Hon Minister, I want to thank you for coming to the House to respond to these two Questions scheduled for you. You are hereby discharged. Thank you for coming.

Yes, Majority Leader? Majority Leader, before you come in, Hon Members, I plead with you to announce the presence of some students in our midst.

First on the list is Ahantaman Girls Senior High School, led by Angela Saki Konda, a teacher. They are from Essikadu Ketan. They are 72 in number.

[Students from Ahantaman Girls Senior High School were acknowledged]

Mr First Deputy Speaker: We also have students from Asankrangwa Senior High School, led by Abednego Dzivenu, a teacher. They are from Amenfi West, and are 52 in number.

[Students from Asankrangwa Senior High School were acknowledged]

Mr First Deputy Speaker: We also have students from Oboadaka M/A Junior High School, led by Lena Asiedu Mayfred, headteacher. They are from Akuapem South and are 73 in number.

[Students from Oboadaka M/A Junior High School were acknowledged]

Mr First Deputy Speaker: Finally, we have students from All Nations University, led by Kerry Amankwah Kumi, chairperson for the Civic Education Club. They are from New Juaben South Constituency and are also 68 in number.

[Students from All Nations University were acknowledged]

Mr First Deputy Speaker: Hon Members, on your behalf, I welcome all of them and urge them to have a fruitful visit to Parliament of the Republic of Ghana. You may kindly resume your seats.

Yes, Majority Leader?

Mr Ayariga: Mr Speaker, we will take the item numbered 13, the Legal Education Reform Bill, 2025 at the Consideration Stage.

Alhaji Habib Iddrisu: Mr Speaker, we do not have any difficulty in doing the Bill, except that I want to draw the Majority Leader's attention to the fact that we were at Question time, but we only answered the Questions for the Minister for Transport. There is no explanation why the Minister of State in charge of Government Communications is not here to provide answers for the Questions numbered 535 and 96.

Mr First Deputy Speaker: Hon Members, as a matter of fact, when certain things happen on the Floor, it makes me think that there is no need for us to have Conclave meetings. This is because I heard the Deputy Majority

Whip explaining in clear terms why the Minister concerned cannot be available. We, in a way, agreed that once the Minister for Transport is available, we should take the two Questions for the Minister for Transport, move to the Legal Education Reform Bill, 2025 and come back to Statements. So, when Leaders reach this agreement, and then we come here to ask for an explanation, which explanation you know because you are part of that particular discussion, I am completely taken aback.

Alhaji Habib Iddrisu: Mr Speaker, what you are saying is right. Save that, when the Deputy Majority Whip indicated that the Minister for Transport was in the Chamber to answer the Questions, and then after that we go to the Legal Education Reform Bill, 2025 and come to Statements—If the Minister is not available, is it that we are coming back for those Questions to be answered or not? Mr Speaker, you remember a Member raised an issue the last time that a Question was not answered. If it is not answered, even though the Answers are advertised, then there can be directives. Your position was that there was no directive from the Speaker with regards to this. So, I am not deviating or departing from what we agreed, but we must be able to get clarity as to what we are going to do with those two Questions.

Mr First Deputy Speaker: Well, if that is what you had said, whether or not the Questions that are not answered will be reprogrammed, I would not have difficulty. But the point that you have made, which you agree with me, is that the Leader did not indicate the

whereabouts of the Minister, that is where I am taken aback. This is because there is a reason for which you are Leaders and the Leaders meet to agree or disagree among yourselves.

Alhaji Habib Iddrisu: Mr Speaker, you are right. Like I said, what you said is what we agreed on, but I am just trying to get clarification. This is because he never clarified that to us whether the Minister, if after we move to the Legal Education Reform Bill, 2025 and come back to Statements, is coming to answer that Question. This is so we know whether he is not coming today; that is what I want to understand.

Mr First Deputy Speaker: Well, I direct that at the time of adjournment, if the Minister is not available to answer the Question, the Questions should be rescheduled accordingly.

Mr Vincent Ekow Assafuah: Mr Speaker, with respect, today I was with you when we launched the Corporate Strategic Plan. You touted the importance of Parliament TV. The Majority Leader also touted the same. What that means is that, as we speak, everything that happens on the Floor and everything that is advertised for purposes of taking on the Floor is being observed by the Ghanaian people.

Mr Speaker, this particular Question to the Minister of State for Government Communications was advertised as far back as 25th June, 2025. He keeps on giving this House reasons he cannot come to this Chamber. My worry is that while the Majority Leader was even, as it

were, attempting to reschedule the Question, he did not give any reason to the Ghanaian people who are also watching from afar, who have seen that this Question has been programmed to be taken today.

Where is the Minister of State for Government Communications? Where is he? What reasons has he been giving to this House? 25th June, 2025, eight months on, and this Minister is still running away from these Questions. Mr Speaker, this is not good for us. He should show some amount of respect to the House and the Ghanaian people. I am particularly not happy with the fact that I filed this Question as far back as 25th June, 2025 and it was admitted by your good self.

Mr First Deputy Speaker: Well, I do not want to say that there is some lack of communication in that particular regard. Yes, Majority Leader?

Mr Ayariga: Mr Speaker, in all sincerity, yesterday at the emergency Cabinet meeting to discuss the cocoa crisis, the Minister did draw my attention to the fact that he had been invited to come and answer the Questions. He even showed me the Questions, and he was preparing to come and answer the Questions.

But at the conclusion of the Cabinet meeting, the President specifically directed him to work with the Chief Executive Officer (CEO) of Ghana Cocoa Board, the Minister for Finance, and the Minister for Food and Agriculture, so that they could

communicate the outcome of the meeting regarding how Ghana is going to deal with the cocoa crisis. So that has engaged him since yesterday, and that is the actual reason he is unable to come today.

The Minister does not disrespect this House. He is a first-timer in this House, but even within the short period that he has been here, he has displayed his commitment, discipline, and his punctuality is well known, unless when he has travelled with the President on his international travels, he is always here in the House. So, I do not want it presented that the Minister is running away from this House. He is a very bright young man, and I know that there is no Question that he cannot answer in this House. So, I can assure you that after today, we will reschedule, and he will answer the Question.

3:23 p.m.

Mr First Deputy Speaker: Yes, but we have Leadership from both sides. This is exactly what happened at Conclave. These reasons were canvassed. For me, you can communicate to the questioner, if the questioner is coming from your Caucus, that this is the situation, then all this would have been avoided. That is the very essence of Conclave. That is my understanding.

Hon Members, the item numbered 13, Legal Education Reform Bill, 2025, is at the Consideration Stage. As indicated yesterday, we referred the Bill to the Winnowing Committee, taking into

consideration the volume of amendments. The Winnowing Committee worked on the Bill, and we have before us the work done by the Winnowing Committee.

So, we would take the work of the Winnowing Committee. The amendments have been integrated, and we will proceed to do the Consideration on the basis of the work done by the Winnowing Committee. With this said, I believe—

Mr Kwame Anyimadu-Antwi: Mr Speaker, I have a difficulty. I am the Ranking Member on the Constitutional and Legal Affairs Committee, and I have not been invited to any winnowing on this Bill. Mr Speaker, I am aware of the Bill that was laid in the House, and I pray that we go through. I am not aware of winnowing. At least as the Ranking Member for the Committee on Constitutional and Legal Affairs, I have not been invited. I am not a Member of the Winnowing Committee, but on this Bill, I should have been invited to participate.

Mr Speaker, I do not know the way forward. But I am aware that there is a Bill that was laid in this House, and we have to go in accordance with that.

Mr First Deputy Speaker: Are you aware that I referred the Bill to the Winnowing Committee?

Mr Anyimadu-Antwi: Mr Speaker, yes. I was expecting that I would be invited to the Winnowing Committee.

Mr First Deputy Speaker: Thank you very much. Once you are aware — Let me hear you, Majority Chief Whip.

Mr Rockson-Nelson Etse Kwami Dafeamekpor: Mr Speaker, Hon Anyimadu-Antwi is senior to me. We served under him, under the Committee on Constitutional and Legal Affairs. Yesterday, we could not proceed with the Bill because there was another stakeholder meeting that he participated in. It was akin to winnowing. So, for him to suggest on the Floor that he did not participate in the winnowing— The changes that those stakeholders are proposing will be advertised, so if he had any concern, he should have raised it yesterday. To suggest on the Floor that he did not know anything about it is untenable. It is not fair.

Mr First Deputy Speaker: Well, that is far from the issue. Let me hear the Majority Leader.

Mr Ayariga: Mr Speaker, indeed, you referred the matter to the Winnowing Committee but even before then, he and his Chairperson had worked on the Bill. And in working on the Bill, he and his Chairperson invited the Winnowing Committee. Mr Speaker, he was not in the country. He even joined online—I was in the meeting. At the meeting to consider the Bill, where all the experts and interest groups were invited, I attended, and he attended online because he was not in the country. So, he participated online; he spoke and contributed.

Based on the work they did, they brought us a set of 78 amendments proposals. Their proposal was to withdraw the Bill and then, having incorporated their 78 amendments into the old Bill, to present a new Bill. They brought the proposal to me, and I rejected it and said, no, if there are so many amendments, it should be referred to the Winnowing Committee.

So Mr Speaker referred it to the Winnowing Committee. I convened the Winnowing Committee. Truth be told, he was not there. But when we met, we looked at the amendments and said, but these are amendments coming from the Chairperson of the Committee. So, because they are amendments coming from the Chairperson of the Committee, the Winnowing Committee can do nothing about it. The Winnowing Committee only looks at amendments proposed by Members when they are numerous, and when we do not want to waste time, we meet at Winnowing to convince the Members to drop their proposed amendments and accept what is coming from the Committee. Or for the Committee to accept what the Members have, and then we can reduce the number.

My view was that the Winnowing Committee had no mandate in this matter. He was there. So, we decided that in that case, let us send it back to the Chamber, so that we will take them one after the other. But we agreed among ourselves that since these are amendments proposed by the Committee, Members should appreciate the need for us to expedite action and not

overelaborate, so that we can move fast. That was the essence and the conclusion of the meeting. So, your proposal that we should take the amendments one after the other is exactly the decision of the Winnowing Committee. The only thing is that we agreed on an approach, which is that Hon Members be given the Bill that has the incorporation of the amendments and also keep a copy of the original Bill.

The person moving the amendments was told to move the amendment by saying: the old rendition is this, we are amending it by deleting this, inserting that, or replacing this. So, go to the incorporated document and read what is in the incorporated document so that Hon Members will now know how it will read. That will make it easy for Members to comprehend and then make our work faster. So, your proposition that we will take the Bills one after the other is exactly what we are going to do. There is no issue here at all.

Mr Anyimadu-Antwi: Mr Speaker, I am glad that the Majority Leader is confirming the fact that I, as the Ranking Member, have not been invited to any Winnowing. I take exception to what the Majority Chief Whip has said, that, having raised this, this is not fair. Mr Speaker, I thought that the Winnowing came about so that we can meet and discuss controversial issues, so we can move faster. As a Ranking Member of the Committee, I have not been invited to Winnowing, and the point I am making is that I have not been part of the Winnowing. Therefore, if there is a new document, I am not going to work with

that new document. That could be a guide.

But Mr Speaker, the document as was laid in this House is what we have to use and that is what the Majority Leader is confirming.

So, the Majority Chief Whip must not attribute unfairness to me. This is fair.

3:33 p.m.

Mr First Deputy Speaker: Hon Members, please let us not debate this particular issue. We are guided by Standing Order 168, which is on Winnowing. Let me read Standing Order 168 (1) which states;

“Where a Bill has been read a Second Time and substantial amendments have been proposed and published on the Order Paper, the Speaker may refer the proposed amendments for winnowing.”

So, upon the Second Reading of the Bill and having seen a substantial amendment on the Order Paper, I referred the Bill to the Winnowing Committee. Now Order 168(2) says;

“The Sponsor, or a Member in whose name an amendment stands, may participate in the winnowing process to justify the amendments during winnowing.”

Therefore, the Winnowing Committee is going to invite any Member who has a proposal to amend the Bill. So, if you are not a Member of the Winnowing

Committee, the law is not saying that if you do not have an amendment in your favour or because you are a Ranking Member of a Committee, you must automatically be invited to participate. This is not the understanding I am gathering from the Standing Order.

So, if you have amendments standing in the name of the Chairperson of the Committee, then the Chairperson of the Committee will be invited to appear before the Winnowing Committee to give justification for those amendments. If the Chairperson in going for the justification before the Winnowing Committee, invites the Ranking Member, so be it.

But the law is not to the effect that as a Ranking Member, if you do not participate in winnowing because you do not have any amendment in your favour, you cannot work on what the Winnowing Committee has done, I beg to differ.

Order 168(3) says that;

“Proposed amendments disagreed to at winnowing may be excluded from the amendments listed on the Order Paper for consideration by the House.”

This means that, when the Winnowing Committee agrees on all the proposed amendments and there is no disagreement, then the Winnowing Committee will accept those amendments. It is only when there is a disagreement at winnowing between the proposal and the Winnowing Committee, that the disagreed proposal would come to the House for a debate.

So being guided by this Standing Order, I do not know what we are dragging this issue for.

Yes, Hon Anyimadu-Antwi?

Mr Anyimadu-Antwi: Mr Speaker, with the greatest of respect. I beg to differ from your ruling.

Mr First Deputy Speaker: Well, it is not my ruling, but I am reading the Standing Order, so use the Standing Order to differ.

Mr Anyimadu-Antwi: Mr Speaker, the simple departure to the ruling on or the interpretation you are giving to the Standing Orders is that, it appears that, you would want to say that once a Committee comes out with a Report and the Chairperson is leading the House, a Ranking Member must keep quiet.

Mr Speaker, all I am saying is that when a Committee meets, various Members may make amendments, inclusive of the Ranking Member. We can have many amendments. Other people may come and guide us. There are situations in which as a Chairperson, there were a couple of times that I could not even lead. You were then the Ranking Member and you led the House on the Committee—

Mr First Deputy Speaker: Yes.

Mr Anyimadu-Antwi: So, to say that we will do winnowing and ignore the Ranking Member of the Committee—I am tempted to believe that there was no

winnowing. There was no winnowing at all.

Mr First Deputy Speaker: No, you are saying a different thing, Hon Anyimadu-Antwi. When you meet as a Committee and you propose amendments to a Bill, that has become the Committee's amendment and it is the Chairperson of the Committee that leads those amendments. That is why when the amendments are called, it is the Chairperson of the Committee that gets up to move those amendments on the Floor. Is that not the case?

So that being the case, the Winnowing Committee will not invite all the Members of the Committee to appear before the winnowing to do the justification. It is the Chairperson of the Committee who, in this case, must represent the Committee, to give the Committee's justification to the Winnowing Committee; that is my understanding.

So, I do not know the wrong interpretation that I am putting on Order 168(1), (2) and (3). Because the law mentions to propose a Sponsor or a Member. We are in this House, we have Members of the Committee, but we say that the Chairperson of the Committee should explain the rationale behind the amendment. Why are we not saying all the Members of the Committee should get up and explain the rationale behind the amendment?

So, I am worried about the position that you have taken, that you are not a Member of the Winnowing Committee.

The Winnowing Committee has worked, but based on the fact that you did not participate in the Winnowing Committee, therefore, their work should be thrown out, that is why I have a difficulty. I have been in your position.

I was a former Ranking Member for Committee on Constitutional, Legal and Parliamentary Affairs. When you are a Chairperson of the Committee, it is only when you are absent from the Chamber that they indicate your absence hence, could the Ranking Member move those amendments. But so long as you were in the Chamber and in Parliament, I would not be invited as a Ranking Member to appear before the Winnowing Committee or to move amendments on the Floor while the Chairperson of the Committee is sitting on the Floor.

Yes?

Mr Anyimadu-Antwi: Mr Speaker, you know I have maximum respect for you.

Mr First Deputy Speaker: I know.

Mr Anyimadu-Antwi: Mr Speaker, with the greatest of respect, do not let it appear that a Ranking Member is not necessary.

Mr First Deputy Speaker: No, I have not said that.

Mr Anyimadu-Antwi: To say that, we have to do winnowing when the Chairperson is invited for winnowing and that is enough? I beg to differ.

Mr Speaker, we want to enrich the Bill that is before us. Because the Bill that is before us is very important. I heard the Majority Chief Whip say that, yesterday, there was a meeting and it was a part of winnowing. I beg to differ.

3:43 p.m.

It is just that we have Majority and the Minority and the Ranking Member is the Leader of the Minority; it is only fair. But if you would want to interpret it to say that if the Chairperson is present, the Ranking Member is not necessary. I am not saying it should be thrown out. But so far as I am concerned, because I am not part of winnowing, I am aware of the Bill that is before us. I am aware of the amendments that we have made as a Committee and that is what I said that we should go through.

Mr Speaker, besides that, I have not said anything. But if I had been part of the winnowing, I could have said that on this or that, we have agreed or disagreed. But I am not aware that we have agreed or disagreed on the amendments proposed; that is the point I am making.

I would pray that going forward, if any referral is made to any Committee, that in as much as the Chairperson is respected and invited, the Ranking Member at least might join him for the winnowing. So that we can go through things quickly when we come to the Chamber.

Mr First Deputy Speaker: Hon Members, can we make progress on the

basis of the work done by the Winnowing Committee.

Yes, Prof Kingsley Nyarko?

Prof Kingsley Nyarko: A bit of an information. I am a Member of the Winnowing Committee. After the meeting, I got some proposed amendments from Prof Ahmed Jinapor of Ghana Tertiary Education Commission (GTEC) and he sent a copy to the Chairperson of the Committee for consideration. I am not sure whether those were considered and are part of the revised Bill before us. So, if the Chair could help us by indicating to us whether those proposed amendments from GTEC are considered, otherwise —

Mr First Deputy Speaker: Is that to you or the Winnowing Committee?

Prof K. Nyarko: No, he sent a copy to me and a copy to the Chair because I asked Hon Shaibu and he told me that he has received it through Prof Raymond Atuguba regarding those amendments from GTEC, but I do not know whether it is part of what we have right now.

Mr First Deputy Speaker: Hon Members, the civil society organisation and the general public for that matter, help us to do our work as legislators. So if a concerned citizen raises an amendment to a Bill and gives same to you as a Member of Parliament, it is because that particular concerned citizen will not have the opportunity to speak on the Floor of Parliament and that is why he is using you. So, all you need to do is that if you are convinced by the proposed

amendment coming from the citizen, then you have to own that particular amendment and propose it. So, it will become an amendment in your name. When the amendment is captured by the *Order Paper* and called, we would not have the Professor here to move those amendments, so you should be moving those amendments.

Prof K. Nyarko: What I am saying is that I asked the Chairperson of the Committee at the cafeteria that this is what I have received from GTEC and he told me that he has received same from Prof Raymond Atuguba and that he is going to consider that. But my question is whether the Chairperson has incorporated that into the document?

Mr First Deputy Speaker: But does the Chairperson have a right to incorporate? This is because the Committee's amendments are captured on the *Order Paper* and it is these proposed amendments that are referred to the Winnowing Committee. So, the Winnowing Committee in their meeting will invite all those in whose name those amendments are being captured. What we are talking about is something that happened between you and the Chairman. It is not the Business before the House so if it is not placed before the Committee or it is not coming after the Committee's consideration of the Bill, then it may not be emanating from the Committee. So, what you can do acting as the voice of that person as a Member of Parliament is to own those amendments and propose same if you are convinced that that is the way to go.

Prof K. Nyarko: Mr Speaker, my point is that I can do that but I am not sure because he promised me that he was going to look at it. How would I know if he has done that?

Mr First Deputy Speaker: Yes, Hon Rockson-Nelson Etse Kwami Dafeamekpor?

Mr Rockson-Nelson Etse Kwami Dafeamekpor: Mr Speaker, the work of this House is quite formal. They are all governed by procedure. That is why yesterday you directed that every Member should endeavour to get a copy of the new Bill and go through and be ready to contribute. So, if he is being sponsored by an individual outside, he needs to find out whether those amendments find favour with the new version. If not, then he can have them advertised in his name but to say that he does not know so he wants to find out from the Chairman whether it has been done truncates the process, and in any case, we are not finishing today. So, let us make progress. If tomorrow he is minded that it does not reflect in the new version, he can have the Table Office to advertise them for him then he can own them on the Floor.

Mr First Deputy Speaker: You must first of all be convinced that this is an amendment that has to be carried out and not just because you are given this and you want it to be incorporated. You must be convinced. Do you understand? Above all, when the matter was referred to the Winnowing Committee and as indicated, you are a Member of the Winnowing Committee, you could bring

this to the attention of the Winnowing Committee for consideration but not to come and be asking the person presiding or the House whether it has been taken into consideration. The Chairman of the Committee is not here, so who will be able to answer that particular question for you?

BILL — CONSIDERATION STAGE

Legal Education Reform Bill, 2025

Alhaji Habib Iddrisu: Mr Speaker, is it 2026 or 2025?

Mr First Deputy Speaker: It is 2025 on the *Order Paper*.

Alhaji Habib Iddrisu: The Bill I have here is Legal Education Bill, 2026.

Mr First Deputy Speaker: That is the work done by the Winnowing Committee so we can have that corrected. The Bill laid is 2025 and the *Order Paper* said 2025.

Clause 1 — Establishment of the Council for legal education and training

Mr Dafeamekpor: Mr Speaker, the Chairman is unavoidably absent. So, we pray that the Vice-Chairman should do this on his behalf and move the amendments.

Mr First Deputy Speaker: Hon Members, the application is that in the absence of the Chairman, the Vice-Chairman should take over. Minority Side?

Alhaji Habib Iddrisu: Mr speaker, it is normal. We do not have a problem with it.

Mr First Deputy Speaker: Very well.

Clause 1 ordered to stand part of the Bill.

Clause 2 — Object of the Council

3:53 p.m.

Vice Chairperson of the Committee (Mr James Enu) *on behalf of the Chairperson of the Committee:* Mr Speaker, I beg to move that Clause 2, line one after “country” *insert* “to ensure the maintenance of the highest possible standards in legal education.”

Mr First Deputy Speaker: Hon Members, as you can see, the work of the Winnowing Committee has integrated this particular amendment.

Yes, Prof Kingsley Nyarko?

Prof K. Nyarko: Mr Speaker, I would like to make a further amendment to Clause 2. After “the” we need to *insert* “Promotion and maintenance of the highest possible standards in legal education” This is a further amendment to—So the new rendition should be, “the object of the council is to regulate legal education in the country to ensure the promotion and maintenance of the highest possible standards in legal education.”

Mr First Deputy Speaker: Yes, Hon Members, it is for the consideration of the House.

Mr Dafeamekpor: Mr Speaker, I support the amendment.

Mr First Deputy Speaker: Very well. I will put the question on the amendment.

Mr Mmieh — *rose* —

Mr First Deputy Speaker: Yes, Hon Mmieh?

Mr Anthony Mmieh: Mr Speaker I have a further amendment to my Colleague’s suggested rendition.

Mr First Deputy Speaker: Hon Member, if his amendment is not carried, why are you further amending it? His amendment is not carried. So, Hon Members, let us follow the rudiment of the game at Consideration Stage. I say this over and over.

So, I am putting the Question on the proposed amendment by Prof Kingsley Nyarko.

Question put and amendment agreed to.

Yes, Hon Mmieh?

Mr Mmieh: Mr Speaker, I am grateful.

I want to propose a further amendment to Clause 2. I suggest that in place of the current rendition, we should *insert* “to promote and maintain”, not “the

promotion and maintenance”. That is a little bit cumbersome, in my opinion.

Mr First Deputy Speaker: Because of the word “ensure”, how do you ensure, promote? Read the new rendition.

Mr Mmieh: The new rendition would be:

“The object of the Council is to regulate legal education in the country, to promote and maintain the highest possible standards in legal education.”

Mr First Deputy Speaker: It does not sit well with me.

Alhaji Habib Iddrisu: Yes, Mr Speaker, I think if he could drop it, because it is almost the same.

Mr First Deputy Speaker: Let me hear from Hon Anyimadu-Antwi, The Ranking Member.

Mr Kwame Anyimadu-Antwi: Mr Speaker, I was just prompting him that it is just a juxtaposition of words; it does not change. The value is the same. So, we must as well go with what we have. I have already told him and I am sure he will retreat.

Dr Abdul Kabiru Tiah Mahama: Mr Speaker, I am minded by the fact that the maker of the proposed amendment might be dropping it. But I want to also submit forcefully that it cannot be the same. It will not be the same. If we say “to ensure” in itself is carrying an obligation, “to ensure the promotion”. If we say “to ensure the promotion”, the emphasis is

not just on the “promotion”, but the object is “to ensure the promotion”. But if we say “to promote”, basically your focus now is on “the promotion”. So, that is why I am saying that we must be a bit careful in saying that they are the same.

I think that the rendition provided by my Hon Colleague is more appropriate and is tidier than to say “to ensure the promotion and maintenance”. It is alright to say “to promote and maintain legal education in Ghana” than to say “to ensure the promotion and maintenance of legal education in Ghana”. It is too verbose, and apart from it being verbose—

Mr First Deputy Speaker: Hon Members, we need to get the understanding of the Bill. The way the Bill is crafted, the various universities have a role to play in legal education and then the Council will be in charge of the bar exam. So, if you said it is the Council that is “to promote”, then what happened to the other universities who are going to be accredited to be in charge of the legal education, while there will be a bar examination? That is why carefully, they choose the word “ensure”, which will not go with the word “promote”, but it will go with the word “promotion”. So, we need to get a better understanding of the whole Bill, and that will help us iron this particular Bill out.

Dr A. K. T. Mahama: Mr Speaker, I am guided, and I will go with the explanation. But I just wanted us to know that this rendition is necessarily not the same as the rendition that we have here.

Mr First Deputy Speaker: Yes, that is why I am also telling you that looking at the gravamen of the Bill, they must ensure that the accredited universities also do the right thing. So, we cannot take away the word “ensure”.

So, I will put the question on Clause 2 as variously amended.

Yes, Hon Majority Leader?

Mr Ayariga: Mr Speaker, yesterday at our meeting with the Deans and former Directors of the Ghana School of Law and some justices of the Court of Appeal, we agreed that what we are trying to regulate is professional legal education. And so, the proper rendition should be “highest possible standards in professional legal education”.

The argument that was made yesterday, Mr Speaker, is that the Bill is not seeking to regulate LLM degrees. The Bill is not seeking to regulate PhD in law. LLM degrees and PhD in law are legal education, but academic legal education. The Bill seeks to regulate standards in LLB degrees, because LLB degrees are now being incorporated as part of professional legal education curriculum. Both the academic part and the professional part are the interest of this Bill. So, we should not say we are regulating legal education, because legal education with diplomas, postgraduate diplomas, PhDs, *et cetera* are within the remit of Ghana Tertiary Education Council (GTEC) and their universities. But the part that GTEC oversees, which is the LLB, which is the foundation for becoming a professional lawyer, is the

part that the Legal Education Reform Bill is interested in. So, the proper rendition should be “standards in professional legal education”. So, I move for a further amendment to incorporate that.

Thank you, Mr Speaker.

Mr First Deputy Speaker: So, take the new rendition and guide the House.

Mr Ayariga: It will now read:

“The object of the Council is to regulate legal education in the country to ensure the promotion and maintenance of the highest possible standards in professional legal education”.

Mr First Deputy Speaker: So, after “standard”, we *insert* “professional”.

Hon Members, then the correct rendition, if you look at line one, it says “regulate legal education in the country”. So, we cannot have the line two saying “possible standard in professional legal education”; the two will contradict. I am proposing that after “regulate” in line one, that we put “professional” there so that we can be consistent.

Yes, Majority Leader?

Mr Ayariga: That is so, Mr Speaker. Based on the discussions that we had yesterday, it is my candid view, and I hope Colleagues will agree with me, that even the name of the Council has to change because it is not a Council responsible for legal education broadly.

4:03 p.m.

It is a Council responsible for professional legal education, and so there would be the need for us to go back to clause 1 and proffer some amendment to clause 1(1), which says, “There is established by this Act the Council for Legal Education and Training as a body corporate.” We should now call it the Council for Professional Legal Education and Training.

Mr Speaker, I urge my Hon Colleagues to support this amendment.

Mr First Deputy Speaker: So, if that argument has been agreed on, why are they going to give accreditation by the law? Yes, let me hear from Hon Anyimadu-Antwi.

Mr Anyimadu-Antwi: Mr Speaker, I support the amendment that is proposed by the Majority Leader. Indeed, at a meeting yesterday, the Committee together with the sponsor of the Bill, the Hon Attorney-General, agreed that we should go by the Professional Legal Education.

Mr First Deputy Speaker: What happened to clause 23 of the Bill?

Mr Anyimadu-Antwi: Mr Speaker, I have not looked at it. When we get there, we will cross the river.

Mr First Deputy Speaker: It started from clause 22. In making this law, we must consider the entire Bill. That is why you must read the Bill as a whole. I know clauses 22, 23, and 24 talk about

accreditation under marginal notes, accreditation of universities to offer or provide law practice training. clause 22 says,

“The Council shall, in collaboration with the Ghana Tertiary Education Commission, set standards for the accreditation of universities to offer or provide the Law Practice Training Course.”

Now, it has subclauses. Clause 23 talks about the requirement to obtain accreditation, and clause 24 talks about the application for accreditation. So, if the Council is not responsible, as we are talking about, then it means that we have to do something about the decision. As long as the Council is going to give an accreditation together with the Ghana Tertiary Education Commission (GTEC) to run the training to enable the candidates to write the bar examinations, then the Council cannot only be responsible for the professional training.

Mr Anyimadu-Antwi: Mr Speaker, the Council will be responsible for professional training, but at the meeting we had agreed that what would be happening at the universities is the basics, the preliminary courses which candidates will be required to take, aiming at the professional legal education. Universities may start; they could be granted accreditation, but we are still aiming for professional legal training.

Mr First Deputy Speaker: So, if the argument you are making is something that we should go by, then at the LLB

level, the Council has no business. So, why would they be giving accreditation? Then we have to even look at the Long Title, because the Long Title says “Legal Education Reform Bill”. So, what was the discussion at the Committee regarding clauses 22, 23 and 24?

Mr Ayariga: Mr Speaker, the structure does not change. The problem that came up was that we consistently referred to ‘university’. Yesterday, the Ghana School of Law stated that it is not a university but also provides training for professional legal education. So, we will have to remove the word “university” and replace it with “providers of professional legal education”. We will then move to the interpretation section to define the “providers of professional legal education”. There, we will now proffer an interpretation that captures universities and the Ghana School of Law. Otherwise, after this, they are not. That was the first phase.

Then the second phase of the issues that you have raised is that the responsibility to accredit universities who will be playing a role in the provision of professional legal education now as providers of a service, that responsibility is generally the responsibility of GTEC. But for quality assurance, the Council is going to collaborate with GTEC to set the standards related to LLB degrees that universities are offering, with the view that the graduates will be involved in writing the examinations that will enable them to be called to the Bar. So, if a university is just offering its LLB degree and it does not care if one qualifies to

write the Bar exam, it does not need to come for accreditation.

But for universities that intend their products to be among those who will write the Bar exam, the Council is interested in their standards. That is why the Council, in partnership with GTEC, will have to accredit those universities. The accreditation function will remain a collaborative effort between the Council and GTEC.

Mr First Deputy Speaker: So, Leader, let us get it clear. If clause 1 with the proposed amendment should read,

“The object of the Council is to regulate professional legal education in the country to ensure the promotion and maintenance of the highest possible standard in professional legal education”.

The question, therefore, is what is taking place in the universities? Is it professional legal education?

Mr Ayariga: Mr Speaker, it is the foundation that you build on. Indeed, one issue that came up strongly yesterday was a commitment to reduce the number of years. We spent a long time discussing which parts of the professional course could be taught at the LLB level, so we could reduce the number of years at the law school.

For instance, yesterday, we argued that the Law of Interpretation which we study at the Law School as part of the professional programme could equally be offered as an LLB course because

parts of the Law of Interpretation are already taught in the Law of Torts. Interpretation is taught in Contract, and constitutional interpretation is also taught in Constitutional Law. Interpretation can be incorporated into the LLB programme to reduce the time required. The same applies to Taxation, Land Law, Property Law, and so forth. Even in Company Law, it was argued that the substantive aspects can be taught as part of the LLB course, after which students proceeding to law school would focus on practice such as taking minutes, drafting *et cetera*.

That way, we will be able to shorten the time frame in law school and achieve the objective of having the course completed in four years. So, we recognise the LLB degree for the purposes of writing the Bar Exams as part of Professional Legal Education.

Mr First Deputy Speaker: So, what then is the difference between professional legal education and legal education?

4:13 p.m.

Mr Ayariga: Mr Speaker, the difference is that when one is pursuing a Master of Laws (LLM) – LLM is legal education. When one is pursuing a Doctor of Philosophy (PhD), a PhD is a legal education. *[Interruption]* Yes, Bachelor of Laws (LLB) is legal education but if it is to enable one write the Bar exams, then the Professional Legal Education Council becomes interested in that degree. For instance, a person goes to Malta to read LLB. If the

LLB at Malta is not accredited by the Professional Legal Education Council, it does not entitle one to automatically come and write our Bar Exams. For one to become entitled to write our Bar Exams, as an LLB graduate, one must have pursued that course in a university accredited by the Council and that is the whole objective.

Mr First Deputy Speaker: Let me hear from the Hon Ranking Member, then I would come to the Chief Whip.

Mr Anyimadu-Antwi: Mr Speaker, I may want to add to what the Hon Majority Leader has said. And I am giving an example. Mr Speaker, I was a foundation lecturer at Kwame Nkrumah University of Science and Technology (KNUST). When we started the LLB course, the idea was that the graduands would do one year at the Law School. In fact, that was the thought. Therefore, subjects like Company Law, Law of Evidence, Civil Procedure and others were introduced. It is unfortunate that the Attorney General is not in the House.

As the Sponsor of the Bill, he had even proposed that after the legal training, one goes to the Law School for the professional to do purely the Criminal Procedure, Civil Procedure, and he suggested about four subjects. He suggested the Law of Immovable Property as was taught by Mr Christian Hans Kwame Lodoh. So, he was saying that we could do four subjects.

Mr First Deputy Speaker: Mr Lodoh teaches Conveyancing and Drafting.

Mr Anyimadu-Antwi: Yes, Conveyancing and Drafting and that is what I meant by the Law of Immovable Property.

Mr First Deputy Speaker: Yes.

Mr Anyimadu-Antwi: Mr Speaker, in the course of time, because the Ghana School of Law and the University of Ghana did not synchronise with the thought of KNUST, they had to give up the idea. In fact, now, there are people who do, for instance, Company Law or the Law of Evidence at the LLB level, and they only go to the professional level, and that is repeated.

Mr Speaker, the professional level as we have now is what one has to go to the Ghana School of Law and now, we are giving it to the universities. But we are saying that for legal training, before one could write the Bar exams, one must have these trainings. One should go through the LLB procedure and that is basic to be a graduate or be admitted to write the Ghana National Bar Exams.

Mr First Deputy Speaker: Hon Members, maybe my detailed reading of the Bill is what is causing the problem. Because if you look at clause 62, it talks about Law Practise Training. It reads:

“The law practice training

A person who holds a Bachelor of Law degree shall undergo law practice training in order to qualify to sit the National Bar Examination.”

So, irrespective of your LLB, by this clause 62, you would have to do the law practice training to satisfy these requirements in writing the National Bar Exam.

So, why is the Council interested in giving accreditation?

We need to take all these things on board in coming to the understanding of clause 2. Because my understanding is that you go and have your legal education. Once you qualify under clause 62, then you can write your Bar Exams.

Let me hear Hon Boamah-Nyarko.

Mr Boamah-Nyarko: Mr Speaker, thank you very much. It is good at this very beginning, to situate the import of this Bill and what we seek to achieve.

Mr Speaker, the difficulty the amendments being proposed at both clauses 1 and 2 is going to cause, is the definition we give to the professional legal education. Per the explanation the Hon Majority Leader was trying to help us with, LLB programmes being run across all universities may not necessarily get accreditation for them to get people qualified to write the Entrance Exams or the Bar Examination. Meaning that this Bill is seeking not to regulate the LLB because if we are regulating LLB per this Bill, then it means that from the LLB, one should have automaticity in doing the law practice and then going to write the exam. But the import of the Bill is saying that beyond the LLB, this Council will give further accreditation to

some specific universities and institutions.

So, once we create the second layer, that second layer becomes the premise upon which preparation for professional legal education is being targeted. So, we should be very careful, else what we should be looking at reading the Bill as a whole, is to ensure that the Council then regulates the LLB and all accredited LLB institutions become automatic institutions that can train people for the practice. But once we break these two, then the difficulty will be that the LLB does not become a mechanism for professional legal education, based upon which this Act is being targeted. So, reading clause 1 and clause 2, I believe that we should be guided by where Mr Speaker is coming from, which I also believe that this particular provision will lead to some absurdity.

Mr First Deputy Speaker: Yes, Dr Sosu?

Dr Sosu: Thank you very much, Mr Speaker.

Mr First Deputy Speaker: Mr Speaker, inform the Clerks-at-the-Table. They say they do not have it in their record.

Dr Sosu: Mr Speaker, I would use the platform and following the precedent of the venerable Leader, Osahen Afenyo-Markin to inform the Clerks-at-the-Table that this week I was conferred or I was awarded a PhD in Law. And so, they can amend their records to reflect that.

Thank you very much, Mr Speaker.

[Hear! Hear!]

Mr Speaker, I think that the purpose of this Bill is to regulate professional legal education. It is important for us to distinguish between LLB programmes and professional legal education. LLB programmes are already programmes that are accredited by the Ghana Tertiary Education Commission (GTEC). It is part of an academic discipline that is accredited by GTEC. What the Council seeks to do is to regulate professional legal education, that when one finishes their LLB, the processes towards becoming a Barrister and a Solicitor, that is what the Council seeks to regulate. And the reason the Council may be interested in what happens at the various universities is just to ensure that students being produced at universities are of high quality to be able to take that professional legal education. But beyond that, that is the domain of GTEC.

4:23 p.m.

Mr Speaker, what that means is that the Council, with its accreditation powers, is going to monitor the LLB programmes happening in the various universities, so that it is not automatic that a university or an institution will be accredited to run a professional legal education. The Council is going to look at their facilities, staffing, course structure, before the Council will then grant accreditation for them to run the professional legal education, which currently is run by only the Ghana School of Law. So, the purpose is to

break that monopoly and give access to other universities that have the facility and the capacity to run professional legal education.

So, I believe that the amendment proposed by the Bill is in its place, and in fact, the rendition is accurate. Mr Speaker, if you may put the question for us to move forward.

Mr First Deputy Speaker: Yes, we agreed on the rendition, but it is the other provisions in the Bill that is making it a bit clumsy as to whether they are in charge of legal education or they are only restricted to professional legal education. We must be very careful to avoid conflict of laws. GTEC is established by law to give accreditation to universities. Now, if we make this particular law to say that GTEC must give that accreditation for LLB together with the Council, what happens if there is a conflict? That is one leg.

Now the second leg is that if we look at the Bill, even when you are accredited to read the LLB by the Council, and you have finished LLB, as by the Council, you are not qualified to do the bar exams. Do you understand? The person must be trained by an institution accredited to do the law practice training. That is why I am of the view that if we are going to restrict it to a professional legal education, then the accreditation should be limited to the institutions that will be training in the law practice, so that from there, people would go to write their bar exams. So, to say that the universities, at the LLB level, must be accredited by

GTEC together with the Council, is where the complexity is coming from.

But let us put a question, when we get there, we will do our best to make sure that we do not have internal conflicts in the same laws that we are making. So, Hon Members, taking into consideration the proposed amendment by the Chairperson, Hon Kingsley Nyarko, and the Majority Leader, the new rendition that I will be putting the question on reads,

“The object of the Council is to regulate professional legal education in the country to ensure the promotion and maintenance of the highest possible standard in professional legal education.”.

Question put and amendment agreed to.

Clause 2 as amended ordered to stand part of the Bill.

Clause 3 — Functions of the Council

Mr First Deputy Speaker: Yes, Chairperson of the Committee?

Mr Enu: Mr Speaker—

Mr First Deputy Speaker: Chairperson, hold on. Let me hear Hon Anyimadu-Antwi.

Mr Anyimadu-Antwi: Mr Speaker, the Majority Leader moved for an amendment at Clause 1, and what we have done at Clause 2, must be

consequential. So, could we consider that before we proceed?

Mr First Deputy Speaker: There may be consequential directions. It will even affect the Long Title and the eventual title of the Bill. So, let us leave that one for now so that when we come to consider the Long Title of the Bill, we will give those consequential directives.

Chairperson of the Committee?

Mr Enu: Mr Speaker, clause 3 - amendment proposed – Paragraph (a), *delete* and *insert* the following: “(b) in collaboration with the Ghana Tertiary Education Commission, set the standards for the accreditation of a law programme in universities;”

Prof Nyarko: Mr Speaker, at the Winnowing Committee, I suggested that instead of “universities”, we should make it “tertiary education institutions”, because the faculties or institutions that run law programmes are not all universities. Some are university colleges and some are colleges. So, if we make it universities, then it excludes those other institutions that run law programmes. But the Leader advised that it would be part of the interpretation moving forward. This is because if we read Act 1023 as captured, it talks about tertiary education institutions and not universities. We would not see “universities” in the Bill. So, I am suggesting that—

Mr First Deputy Speaker: So, the Act 1023 talks about tertiary education —

Prof Nyarko: Tertiary education institutions, not universities. So, if we could capture this as part of the interpretation for universities to mean—*[Interruption]*—Then it should be “accredited tertiary education institutions” instead of “universities” and there should be consequential amendments too anywhere we find universities.

Mr First Deputy Speaker: The proposed amendment is for the consideration of the House.

Mr Dafeamekpor: Mr Speaker, I have another proposal to the amendment. Instead of “tertiary educational institutions” it should just be “accredited institutions”. This is because we are seeking to maintain the Ghana School of Law, as it is, to continue to build on its foundational or foremost place in offering legal education. There are other private entities that are interested in establishing schools that will be accredited to offer professional legal training. So, it should simply be accredited institutions, whether found at the tertiary level or specially established for this purpose. It is—*[Interruption]*—yes, I am saying it should be “accredited institutions”, not “accredited tertiary educational institutions”, not universities.

Mr Boamah-Nyarko: Mr Speaker, thank you very much. I just want to draw the Majority Chief Whip’s attention to clause 3 (b) that is being suggested. Already, it is reading “shall in collaboration with the Ghana Tertiary Education Commission, set the standards

for the accreditation...”. So, there is already “of a law programme in tertiary educational institution” They will amend that. So, does he want us to add “in accredited tertiary”?

Mr Ayariga: Mr Speaker, let me say that I am holding the paper presented by the court of appeal judges, deans and directors of the Law School, and their proposal was that we replace the word ‘universities’ in the Bill with ‘professional legal training providers. This may be the Ghana School of Law or any other institution accredited to run professional legal training programmes at the universities.

But if we do not replace that word, and we keep using universities, because this will now be the main legislation governing professional legal education, the Ghana School of Law will be totally eliminated. This is because it is not a university. So, consistent with that—

3:23 p.m.

Mr First Deputy Speaker: Leader, we got that point. Now, who gives accreditation to the Ghana Law School? Is it GTEC?

Mr Ayariga: No, the Council that we have just created. That is the Professional Legal Education Council. They will now take up that job in collaboration with GTEC.

Mr First Deputy Speaker: So, the categories are now three per this Bill; one, is the LLB, which is offered at the university level, two, is a professional

practice training, and three, is the Bar exams. When you pass, you then become a lawyer. That is the understanding that I get.

So, which level requires the accreditation? Is it required at the level of LLB, or at the level of the practice training institution? If it is limited to the practice training institution, why are we bringing the universities? Unless the universities have decided to offer the practice training, they will not be accredited. Do you understand?

In that case, for the practice training, GTEC does not come in; it is the Council that comes in.

Mr Dafeamekpor: Mr Speaker, if you may hear me. The essence of all this reform is to offload the mandate of the Ghana School of Law as it is to the faculties because of issues of space. Now, we are setting up this legislation to empower the faculties to be able to offer professional training. In doing so, there will be standards. Those standards will be set by the Council in addition to the standards necessary for accreditation set by GTEC. That is why we are seeking a collaboration between GTEC and the Council in offering the accreditation to the faculties or the law schools, as they want them to be called now, that are prepared or will be willing to take advantage of this new reform.

To be able to meet the standards set by the Ghana School of Law, the checklist provided by the Council will have to be met by all the faculties that will be interested. So, if the faculties offer the

programme to their students, possessing their LLB, to go to the professional training, then the students will be at par with what the Ghana School of Law provides presently. Then, all of them will prepare to write the National Bar Exam, which is offered only by the Council.

Mr First Deputy Speaker: That is why I am saying that if care is not taken, you may get GTEC to also give accreditation for the professional practice training. My understanding is that whatever is at the university level, let us leave it for GTEC. Then, when it comes to the professional training and practice, any tertiary education institution that wants to offer professional practice training must come to the Council for accreditation.

Mr Dafeamekpor: Mr Speaker, that is exactly what it is.

Mr First Deputy Speaker: No, but we are saying that the Council must accredit at the LLB level at the university level with GTEC.

Mr Dafeamekpor: No, the Council is not accrediting the faculty to run LLBs. The Council is saying that to be accredited to offer professional training, there are additional set standards that must be met.

Mr First Deputy Speaker: I made reference to clauses 22, 23, and 24—

Mr Ayariga: Mr Speaker, clause 3(a) says:

“Accredit universities to provide professional legal education and training in the country in accordance with paragraph (b) of subsection (3) of section 8 of the Education Regulatory Bodies Act, 2020 (Act 1023).”

Under that Act, it is the GTEC that does it. So, the accreditation is to be done according to the GTEC Act. That is the Education Regulatory Bodies Act, 2020, not this Act.

Now, when one comes to clause 22, it is focusing on the setting of the standards for the accreditation. Clause 22 says:

“The Council shall, in collaboration with the Ghana Tertiary Education Commission, set standards for the accreditation of universities to offer or provide law practice training.”

So, it is the standard setting that it is to collaborate.

It is there. Not to actually carry out the accreditation itself, but “... set standards for the accreditation of universities to offer or provide law practice training.” Then clause 3(a) says:

“accredit universities to provide professional legal education and training in the country in accordance with paragraph (b) of subsection (3) of section 8 of the Education Regulatory Bodies Act, 2020 (Act 1023).”

When it comes to the standards, it is the Council and GTEC. They have to work together to set the standards. When it comes to accreditation, it is done

according to the GTEC Act. That is how I read this.

Mr First Deputy Speaker: Hon Majority Leader, let us get it clear. My understanding is that for the professional law practice, the standards and the accreditation are an exclusive preserve for the Council.

Mr Ayariga: Let me explain. Now that we are going to permit universities to also provide their training programme, GTEC says the university is their preserve. It is not the Ghana School of Law. So, they regulate the degrees. If we say that the universities should run a professional law course training programme, GTEC will still accredit that one. We are saying that the Council would work with GTEC, set the standards for GTEC to accredit the universities to run the professional legal education programme. The Attorney-General and Minister for Justice is here. If I am not presenting it properly, he can explain.

Mr First Deputy Speaker: Well, Attorney-General and Minister for Justice, help us. The problem is caused by clause 2. First, the title of the Bill; the long and short titles are Legal Education. Legal education goes beyond professional training because there is a degree aspect to it. So, the issue is whether it should be the legal training or professional legal training.

When we came to clause 2, there was a proposed amendment, and the new rendition for clause 2 is that:

“the object of the Council is to regulate professional legal education in the country, to ensure the promotion and maintenance of the highest possible standards in professional legal education.” So, the House has agreed on this rendition.

So, the question, therefore, is, what then is the difference between legal education and professional legal education?

4:43 p.m.

Dr Ayine: Mr Speaker, given where you and I come from and how we became lawyers, I do not expect that we should be asking this question. Because legal education definitely comprises two tiers. Tier One is the Bachelor of Laws (LLB) programme, which is offered by universities accredited to run bachelor's programmes generally and if they have a faculty of law or a school of law, that faculty or school will train and educate people and issue them with degrees for the Bachelor of Laws.

Tier Two is what you and I went through when we moved from the Faculty of Law, University of Ghana and went to the Ghana School of Law, otherwise known as *Makola*, where we had our professional training. It is Tier Two that created the problem.

Tier Two is where the problem of legal education was and that is what animated our desire to reform legal education. So, it is Tier Two, the professional aspect that this Bill is seeking to regulate.

Now, the thinking within Government and the logic of the Bill was that, if we regulate Tier Two, and we do not regulate Tier One and Tier One produces chaff, the chaff will move to Tier Two and the standard of legal education will fall. So, we made an attempt to link Tier One to Tier Two by saying, if the Council for Legal Education and Training has to regulate Tier Two, then it needs to have a role in how the standards of Tier One are set.

So, we decided that they should do so in collaboration with GTEC. Now, GTEC has given us an input to say Tier One is their territory; they will deal with the universities when it comes to accreditation for running the Bachelor of Laws programmes. So, we should leave that to them and concentrate only on Tier Two, which is a Professional Legal Education.

Now, the thinking is that, instead of maintaining the monopoly at the Ghana School of Law, where candidates must sit entrance examinations and you have a backlog of some 6,000 LLB holders remain unable to gain admission, we should decentralise Tier Two and permit the universities with accreditation to offer it.

The accreditation will not be granted by GTEC, but rather by the Council for Legal Education and Training, in collaboration with GTEC, for them to do the Tier Two, that is the Professional Legal Training. That is, a Law Practice course will be run by the universities and the accreditation will be done by the Council for Legal Education and

Training. Because as rightly pointed out in clause 2, the Council will be in charge of Professional Legal Education. So that is the linkage.

We want to focus more—

Mr First Deputy Speaker: Why did you not bring the Bill as Professional Legal Education Bill instead of the Legal Education Bill? That is what is causing the confusion.

Dr Ayine: Mr Speaker, the thinking within Government was broadly to overhaul the legal education regime in the country. But in consultation with some of the stakeholders—For instance, yesterday, the Leader presided over a meeting, where the Ranking Member of the Committee on Constitutional and Legal Affairs, my own classmate, Mr Kwame Anyimadu-Antwi, was present. At that meeting, the lecturers of the Ghana School of Law, came together and made substantial input. I told them I am an open-minded person when it comes to how we reform legal education; so, I listened to them.

One of their concerns was that, the scope of the Bill should not extend to the running of the LLB programmes and that we should narrowly refine the scope of the Bill to deal with Professional Legal Education, something that GTEC has also pointed out. Then Majority Leader agreed that should be the route that we should be travelling on. That is how come we are amending it to read, “Professional Legal Education Bill”, in order to align with the thinking of some of the key stakeholders.

Mr First Deputy Speaker: You would agree with me that where we are both coming from—there is Tier One and Tier Two. So, the focus of this particular Bill should be on Tier Two rather than Tier One.

Mr Mahama Ayariga: Mr Speaker, in the past, when it came to regulating Professional Legal Education, the focus was on Tier Two. But because of the reforms, there is some apprehension about standards. The approach to dealing with the problem of standards is that we go back to Tier One and be interested in what happens in Tier One.

So, if you look at the Bill, you would find out that it substantially regulates the LLB degree. If you look at this Bill, from clause 22, there are clauses that provide for the accreditation. You would find out that from those clauses onwards, we delve into the LLB degree, the courses that should be run, the accreditation and the standards in terms of the personnel who should be teaching in the university. We even delved into the library and the Information Technology (IT) infrastructure, all at the LLB level. This is because people are apprehensive that if we just say that candidates should go and write a bar examination, we may end up churning out substandard lawyers. So, for that quality assurance, we have gone back and we are interested in the foundation, which is the first degree.

This is to make sure that by the time that a university is accredited to even offer the first degree, they would have met all the criteria. We even obliging the Council to institute an annual inspection

of the universities that are offering the programme, just to be sure that even at the LLB level, the standards there are well maintained. So that the products can then go and do the professional training programme and then they can write the main examinations.

Mr Speaker, yes, we have the academic law degree and the professional law degree. But by this new regulation, we have co-opted the first-degree programme into the professional training. We are even advocating that because of what we are doing, we should move some of the professional training programmes back into the LLB programme. So that we can shorten the Professional Legal Education from two years to one year.

Mr First Deputy Speaker: If that is the case, I am comfortable with the use of the language Legal Education, instead of limiting it to Professional Legal Education, because of where I am coming from.

Parliament passed the law to empower GTEC to give accreditation. So, if today, Parliament is taking that particular power to give accreditation regarding legal education to the Council, that is the law Parliament is passing. Dr Ayine, do you get the point? So, in one breath, we want it to be Professional Legal Education. In another breath, we want it to be Legal Education.

Are we talking about professional legal education or are we talking about legal education? So, Hon John Darko—

4:53 p.m.

Mr John Darko: I agree completely with Mr Speaker on this, 100 per cent, because your proposal to bring the LLB-run programmes under the legal education programme is a legal education reform. So, if you are putting all of that together, we cannot call it only professional legal education. It is a legal education reform we are doing and so, if we are going by his example, we cannot limit the name. I think that the name as it is right now, Legal Education Bill, should stand and it will cover everything we are talking about. Because when we change the name, it means that we are dealing with only the second tier as we have been talking about. But from what we are saying, we are dealing with both first tier and second tier, and that is legal education reform. So, I agree completely with Mr Speaker.

Dr Sosu: Mr Speaker, when we look at the engagements that we have had with the various stakeholders, the understanding that I have is that we are regulating professional legal education. There is no two ways about that. The essence of this Bill is that traditionally, we have the universities running LLB programmes accredited by GTEC, and the Ghana School of Law runs the professional legal education. What we are doing with this Bill is to take part of Ghana School of Law's mandate and give it to various universities that have the appropriate infrastructure to run the professional legal education.

Mr Speaker, we cannot use this Bill to amend the lack of quality in training of

LLB in universities. That is not what we are doing here. We cannot say that because the Council is interested in how the foundational courses are done, the Bill is stretching its arms into GTEC's mandate. I believe that the essence of this Bill is professional legal education.

Mr Speaker, all the provisions that were referred to when we go to the provisions from 22, 24, 23, it relates to the universities that seek to run the professional legal education. It has nothing to do with LLB and all those things.

Mr Speaker, that is my respectful view. That is what it is.

Mr First Deputy Speaker: Thank you very much. Hon Members, I have been hearing from lawyers. I intend to hear from the doctors also.

Hon Prof Titus Kofi Beyuo, you have the floor.

Prof Titus Kofi Beyuo: Mr Speaker, I thank you for the opportunity to contribute to this. I think there is an example in medical education that I think can help what we are discussing. I just want to proffer that opinion. In the medical education, if we look at it technically, we also have a basic sciences component of our education and then the clinical component, which is analogous to your professional law programme. The basic sciences are done by the universities, regulated by GTEC, but the Medical and Dental Council, has interest in it. So, there is a complementary regulation. If someone needs to start a

medical programme, a medical degree programme, for the first four years where one gets a Bachelor of Science (BSc) in medical science or human biology, they need to get accreditation from GTEC, but at the same time, they have to get the medical and dental council to see. But they go to GTEC first and the Medical and Dental Council does a complementary regulation because it is a professional programme. We cannot sit and look only at the top because at that time, if the quality of material coming is bad, it cannot be corrected within two or three years. So that complementary regulation is important. I think that we should take the opportunity of this new Bill to make sure that GTEC plays its role. Then the Council for Legal Education also does complementary regulation at the basic level. Then when they come to the professional, then it is complete.

Mr First Deputy Speaker: Yes, so in the Medical and Dental Council, what is the object? Is the object limited to professional?

Prof Beyuo: I do not know whether we are saying that you can have professional and non-professional medics. We see the entire medical field as a profession. So right from entry, they have started a professional track. So, the goal is to go through the process. Of course, there are people who do not finish.

Mr First Deputy Speaker: So, it is in all medical and dental education.

Prof Beyuo: Mr Speaker, yes.

Mr First Deputy Speaker: That is why people are proposing here that it should remain legal education, but not professional legal education.

Prof Beyuo: Mr Speaker, if they want to suggest that, I do not know how. I am an educationist myself and I do not know why I would be interested in the terminal end and not be interested in what is fed to the terminal end. Because we all know that when the foundation is wrong, it takes a lot of energy to attempt to correct.

Mr First Deputy Speaker: Exactly. That is why Members are trying to agree with the law that came to the House. That it should be that the object of the Council is to regulate legal education in the country, to ensure the promotion and maintenance of the highest possible standard in legal education. But there is an introduction to limit to professional legal education.

Yes, Dr Dominic Akuritinga Ayine?

Dr Ayine: Mr Speaker, I will revoke the degrees of all my former students who are standing up. *[Laughter]*

Mr First Deputy Speaker: Apparently, I am not one of them.

Dr Ayine: Including but not limited to the Hon Member for Damongo. *[Laughter]*

Mr Speaker, on a more serious note. What the medical doctor has told us is precisely what we are concerned with. But legal education is a comprehensive concept. It includes the LLB, the LLM,

and then the PhD. This Bill is not seeking to regulate all that spectrum of degrees. We are not going to cover all of that.

I do agree that it is a question of nomenclature and not substance, because the Bill itself seeks to deal with aspects of legal education that it has defined very clearly. But as the medical doctor rightly pointed out, if we are not concerned with the base, what will then happen is that the base might produce chaff that will come up to the top. But we do not want to take over the functions of GTEC as far as the base is concerned. So, we will, in the words of the medical doctor, do complementary work when it comes to the LLB. But when it comes to the professional aspects, the Council for Legal Education and Training will comprehensively regulate and accredit universities.

Mr Speaker, for instance, if there is a university that is offering an LLB programme, but we know that they do not have the infrastructure nor the personnel to be able to run the programme, the Council for Legal Education and Training will not allow that university to run the professional programme. That is the essence of what we are doing here. So, I do not think that qualifying it with professional legal education does any harm to the form and substance of the Bill.

I think that from the advice or input that we got from the law teachers and lecturers, qualifying it with “professional” pinpoints the problem that the Bill is seeking to solve. But no

harm is going to be done if we leave it as Legal Education Bill and not the professional legal education. So, we leave it to the House.

Mr First Deputy Speaker: Hon Members, let me take two more. If it still creates problems, we will defer it. So, I want to give the floor to Hon Samuel Abdulai Jinapor but take into consideration the caution by the Attorney-General.

5:03 p.m.

Mr Samuel Abdulai Jinapor: Mr Speaker, thank you very much, I am well cautioned.

Mr Speaker, I think you have been trying to simplify the discussion. The goals the Government seeks to achieve are all welcome. The only confusion is the mandate to regulate academic legal education and professional law or legal training. I see that my master is engaged with the medical doctor. But before the Attorney-General and Minister for Justice came into the Chamber, the Hon Majority Leader actually indicated that they seek to fuse LLB into professional legal education or professional legal training. He even gave the examples that Interpretations can be taught at LLB; aspects of Company Law can be taught at LLB. That is where we have a problem.

Mr Speaker, my respectful view is that academic legal education, LLB, LLM or PhD in law, should be the preserve of GTEC and tertiary education. If you want to proceed to acquire professional

legal training to become a lawyer—Hitherto, it was within the remit of the General Legal Council, which is what the Parliament is seeking to change, to have this Council rather regulate it and also break the monopoly of the Ghana School of Law, to allow other institutions who want to engage in professional legal education to do so.

That should be within the preserve of the Council. But, once you begin to struggle between whether the Council can, in conjunction with GTEC, regulate LLB, and that is where the confusion is, because in this country, Mr Speaker, basic education, which is kindergarten, primary school to secondary school, is regulated by the Ghana Education Service. Tertiary education is regulated by GTEC. That is what it is. Now, if you want to say you want to focus on the foundation, somebody will say to you, then start from kindergarten. Then let this Council be responsible for even the work of Ghana Education Service. That would be overly simplistic.

Mr Speaker, what I am saying is that the Council should be responsible for professional legal training. GTEC should be responsible for tertiary academic legal education. There are people who want to do LLB but not to proceed to do professional course. They want to continue to go and do LLM or do a PhD. That falls within the remit of academic, and that is GTEC. But if you want to veer into professional legal training, then this Council will come to play. And if a university wants to set a school to engage in professional legal training, they will

then require accreditation from this Council. And that simplifies the matter.

Mr Speaker, let me conclude by respectfully suggesting to my master, the Attorney-General and Minister for Justice, that they should withdraw the Bill. I hear he says that Government thought through it very well. But with the suggestions we have given to them, if they withdraw the Bill and simplify it this way, it will achieve the goals they have set for themselves, and it will also ensure that there is simplification when it comes to who will replace what—

Mr First Deputy Speaker: A Bill that is within the domain of Parliament should be withdrawn, then what is your responsibility as a Member of Parliament?

Mr S. A. Jinapor: Mr Speaker, either they would take your suggestion—

Mr First Deputy Speaker: Are you not a lawmaker?

Mr S. A. Jinapor: Mr Speaker, I take your point. I am guided. I thought they would take it.

Mr First Deputy Speaker: Please, withdraw the suggestion that the Bill should be withdrawn. *[Laughter]*

Mr S. A. Jinapor: Mr Speaker, thank you very much.

Mr First Deputy Speaker: Yes, Hon Majority Leader?

Mr Ayariga: Mr Speaker, I think that when Members participate in this debate, they should be sure they have looked at the entire Bill and understood the structure.

Mr Speaker, when I say that we have an interest in the quality of even the LLB, it is captured in the Bill. When you turn to clause 46, it says the Council shall, in consultation with accredited universities, develop a comprehensive curriculum for a Bachelor of Laws degree programme. Now, clause 47 then delves into the content of the Bachelor of Laws degree programme, that is, the LLB programme. Then clause 49 talks about minimum requirements for Bachelor of Laws degree, which courses you must read before you are awarded a Bachelor of Laws degree. And then the Bill keeps mentioning “law programme”. At the interpretation section, the Bill gives a definition of “law programme”. It says that:

“Law programme means the Bachelor of Laws degree and law practice training”.

So, this Bill has linked the two. This Bill is saying that we are carrying out a comprehensive review of legal education. We are interested in the law degree.

We recognise that the law degrees are run in the universities. The universities are already accredited by GTEC. But we are interested in the component of what the university is offering, which will be passed on to us for us to churn out as lawyers. So, we are not going to sit back

and allow GTEC to regulate generally, because what GTEC does is regulate generally. We are going to be interested in the standards when it comes to the LLB. We are not interested in LLM. We are not interested in PhD. Because even if you get 10 PhDs and you do not have the basic law degree, you will not be allowed to write the bar examinations.

So, we are only interested in the LLB, and we are interested in the courses that must run there, the quality of the teachers that will teach there, the standard of marking examinations, how you can appeal if you feel that the you have been unfairly treated in the examinations, we are interested in all that. So, there must be collaboration between the Council and GTEC when it comes to setting the standards there. That is all we are saying.

Now, when it gets to professional legal education, again, even though the Council is primarily the drivers, because it is going to now take place in the universities and not the Ghana School of Law, we must again work with GTEC so that we will work with their universities and accredit their universities to run the legal training programme. So, in both the first phase and the second phase, the work is going to be with GTEC, except where the programme is going to take place at the Ghana School of Law (*Makola*) and because it is not a university. *Makola* is not a university. So, they even proposed yesterday to us that we should have some provisions establishing the Ghana School of Law also as an institution because as it is now, they do not even have an act establishing them as an institution.

Since we are interested in regulating professional legal education comprehensively, they are proposing that we also propose some clauses that establish Ghana School of Law as an institution. So, we advise them to go back, work on that component and bring us a proposal by Monday for us to look at because it will not be too late.

Mr First Deputy Speaker: Yes, Hon Leader, that is why your proposed amendment that we should *insert* “professional” is problematic. It means that the object of the Council is to do the fused system, both the professional and the LLB course. So, why are you introducing that the object of the council is to regulate only professional legal education? That is what is causing the problem, because we are dealing with the object and with the explanation that you have given, the object is to regulate the bachelor’s degree as well. So, the object is not limited to professional degree.

Yes, Attorney-General and Minister for Justice?

Dr Ayine: Mr Speaker, you have won the debate. *[Laughter]* Mr Speaker, with all due respect, I know you are not supposed to take part in the debate.

Mr First Deputy Speaker: Yes, I am not debating.

Dr Ayine: But I think as I mentioned earlier, the question of substance, all right, should prevail over the form. So, I think we should abandon the amendment to qualify it as “professional”. Given the Majority Leader’s latest explanation, I

think that it is better we leave it as Legal Education Bill instead of Professional Legal Education Bill. Thank you.

5:13 p.m.

Mr First Deputy Speaker: So, Hon Members, though I will put a question on clause 2, I think, based on this explanation, we can come back to clause 2 and take the rendition as it is, without the use of the word “professional.”

So, the rendition for clause 2 will read:

“The object of the Council is to regulate legal education in the country to ensure the promotion and maintenance of the highest possible standard in legal education”.

Question put and amendment agreed to.

Clause 2 as amended ordered to stand part of the Bill.

Mr First Deputy Speaker: The proposed amendment in clause 3(a) is to change university to institution, and it is for the consideration of the House.

Prof K. Nyarko: What I proposed was to replace universities, not institutions, unless somebody had a counterargument.

Mr First Deputy Speaker: Yes, but we are in a deliberative stage. The proposal is that if you say a tertiary institution, then the law school is not being featured here. That is why we have to refer to institution. Any institution

accredited to offer the course will be accredited in accordance with the Education Regulatory Bodies Act.

Yes, let me give the floor to Dr Kabiru.

Dr A. K. T. Mahama: Mr Speaker, I am tempted to go with the proposal by Prof Nyarko in the sense that the Ghana School of Law, per this Bill, is established as of law and if we refer to clause 77, it clearly says “the establishment of the Ghana School of Law”, and the mandate for that particular School of Law is defined in this Bill. So, it is distinct. In this Bill, we are treating it as a directorate of the Council.

I am not sure whether we are considering the Ghana School of Law’s view that we should change it to an institution, would address the issue. Because the Ghana School of Law is already defined in this law and made up of a directorate of the Council, with a specialised role, including responsibility for the post-call. So, Mr Speaker, I think that the rendition by Prof Nyarko would address the issue rather than trying to conflict it with the mandate of the Ghana School of Law. I think we should not bring in the Ghana School of Law in the definition of a tertiary institution or university. We should go by his rendition.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Very well. It is for the consideration of the House. Yes, Hon Kwami Sefe, Member of Parliament for Anlo, you have the floor.

Mr Richard Kwami Sefe: Mr Speaker, I would like some clarification. Is there no way that we can have Ghana School of Law, Makola, or Ghana School of Law, Legon, or Ghana School of Law, Kumasi, so that the same people will just have that power to regulate all those Schools, rather than trying to give power to universities? Those at Makola should be able to have campuses if there is a need, so that we have peace.

In fact, to me, there is no need to have this back and forth. We should be able to go over this because there are a lot of Bills that we have considered here. For instance, the Free Compulsory Universal Basic Education (FCUBE) policy, where we agreed that at the basic level, as soon as one gets to the second cycle, one can choose to go to Technical and Vocational Education and Training (TVET) or go to senior high school. Over there, other organs or systems handle that. If we train people at the university level and they want to become professionals, what is difficult if the same Makola also open branches across the country and handles that? This is my candid opinion on this, so we can move forward.

I suggest that the Bill be referred back to the Winnowing Committee to go over it and come back for us to have peace of mind to go on. Thank you very much for the opportunity.

Mr Boamah-Nyarko: Mr Speaker, just a small point, particularly based on what Hon Attorney-General raised, concerning the functionality of the Ghana School of Law. If we take a look at clauses 77 and 78, clause 77 says that:

“There is established by this Act, the Ghana School of Law as a directorate of the Council” and then it gives the functions of the Ghana School of Law. So, it throws out all these issues around, getting the law school to operate as an institution among others, because according to clauses 77 and 78, the law school is only the directorate of the Council.

So, the way things are going, a lot of proposals have come from various quarters as we have been told. Unfortunately, at the Winnowing Committee, we have not been privy to a lot of the issues that came after we met. Looking at the way discussions are going among others, I think we should be very careful, else we will set one amendment, and then it will go and become inconsistent with other provisions. I want to draw our attention, for example, to the status of the Ghana School of Law in clauses 77 and 78.

Thank you.

Mr First Deputy Speaker: Hon Members, let us advert our mind to clause 78(b), offer courses, including— It is not limited to remedial courses. So, the functions are clear.

Yes, Mr Sosu.

Dr Sosu: Mr Speaker, I recall that when we had the engagement with the various stakeholders, one of the proposals that came, as far as the use of universities is concerned, was that we should replace universities with professional legal training providers.

This is what came from the eminent Deans of the various faculties. It states that this may be the Ghana School of Law or any other institution accredited to run professional legal training programmes at universities.

So, Mr Speaker, I propose that we replace the universities with professional legal training providers.

Mr First Deputy Speaker: So, in view of the amendment to clause 2, why are you still talking about professional? Consequently, it should be legal education.

Dr Sosu: Very well, Mr Speaker. So, it will be legal training providers.

5:23 p.m.

Mr First Deputy Speaker: Yes, Attorney-General and Minister for Justice, we want to hear you on this before we make progress.

Dr Ayine: Mr Speaker, I think I align myself with the Hon Sosu’s proposal, which is that it should be legal education providers. So, it is comprehensive enough to cover the Ghana School of Law.

Mr First Deputy Speaker: Yes, and the tertiary institutions will also be doing the practice training. Yes, Hon Member?

Dr Fred Kyei Asamoah: Thank you, Mr Speaker. Today, I have struggled to catch your eye.

Mr Speaker, we know GTEC is in charge of the National Qualification Framework, be it from the primary school or up to the PhD level. Section 8(3)(b) of the Education Regulatory Bodies Act, 2020 (Act 1023) states that:

“The Commission shall, in conjunction with the relevant regulatory bodies, accredit professional programmes and institutions at the tertiary level.”

So, instead of bringing in “the professional legal bodies or universities”, I propose that, because of what is stated in, Section 8(3)(b) of Act 1023, we can just *insert* “training institutions”. In that case, it would cover *Makola* or any other institution, because it has already been stated here that “...in accordance with paragraph b, subsection 3 of the Education Regulatory Bodies Act”. So, instead of putting “universities or professional legal education”, I propose that we put “training institutions”, because that training institution has already been qualified by Act 1023, which is the tertiary level education.

Mr First Deputy Speaker: So, is that not closer to the “legal education providers”?

Dr F. K. Asamoah: Mr Speaker, because anybody can apply for that legal education license, that is why it is better not to limit it, because that is a professional body already stated, and we are trying to move away from the professional legal education or legal education—

Mr First Deputy Speaker: No, this one is generally legal education providers, as suggested at the meeting.

Dr F. K. Asamoah: Mr Speaker, I am proposing that we state “training institutions” instead of “legal training institution”. But I propose that with the “training institution” this has already been defined by Act 1023 at the tertiary level, so we can put “legal training institution”, which will be fine.

Mr First Deputy Speaker: Hon Peter Nortsu-Kotoe, you now have the floor.

Mr Nortsu-Kotoe: Mr Speaker, I am talking about the amendment as proposed. If we mention just universities, and it is not defined to include other tertiary institutions like the Ghana School of Law, it will create a problem. So, I am of the view that we *delete* “the universities” and then *insert* “tertiary institutions” or “legal tertiary institutions”, whichever of them I think is better, but I would prefer tertiary institutions, which will include the Ghana School of Law.

Mr First Deputy Speaker: Yes. So, Attorney-General, what rendition will you support? Would you still stick to “the legal education providers”?

Dr Ayine: Very well, Mr Speaker. I think that broadly covers the whole spectrum of the institutions that will provide legal education.

Mr First Deputy Speaker: So, Hon Members, can we not use the word

“institution” and go to the interpretation to define it?

Yes, Hon Sosu?

Dr Sosu: Mr Speaker, I believe that legal education providers can equally be defined to include universities and all the other tertiary institutions.

Mr First Deputy Speaker: Yes, I am not really too fixated. So, whatever terminology we would use here, we need to define it in the Interpretation section.

Dr Sosu: Yes, Mr Speaker. So, I urge the House to adopt what the stakeholders’ rendition provided.

Mr First Deputy Speaker: Hon Asamoah argues that, in line with the Education Regulatory Bodies Act, the word used is “institution”. So, in this context, we can use “institution” and go to the interpretation to define the “institution” to include.

Dr Sosu: Yes, Mr Speaker, I think that rendition would not also hurt the Bill.

Mr First Deputy Speaker: Very well.

Hon Members, I will direct the drafters to provide the definition of “institution” to be very elaborate, to include all legal education providers.

So, the rendition of clause 3 (a) will be:

“accredit institutions to provide legal education and training in the country

in accordance with Paragraph b of Session 3 of Session 8 of the Education Regulatory Bodies Act, 2020 (Act 1023).”

Question put and amendment agreed to.

Mr Enu: Mr Speaker, clause 3, amendment proposed, paragraph b, *delete* and *insert* the following:

“(b) in collaboration with the Ghana Tertiary Education Commission, set the standards for the accreditation of a law programme in universities”

Mr First Deputy Speaker: Hon Members, I would want to direct that, consequently, where you see “university”, it should be replaced with “institution”. So, drafters, kindly take note.

Hon Members, my suggestion is that, to move a bit faster, instead of repeating the amendment proposed by the Winnowing Committee, we say “as captured in the Bill before us”.

Yes, Hon Kyei Asamoah?

Dr Asamoah: Mr Speaker, for this amendment, I believe that it has already been taken care of by clause 3 (a), because clause 3 (a) is the collaboration that you are expecting to be done between GTEC and the relevant professional body, and it has been repeated here again.

So, I think that this clause is completely different.

Mr First Deputy Speaker: Clause 3(a) is saying that you do so in accordance with, but the clause 3 (b) is saying “in collaboration with the Ghana Tertiary Education Commission”, sets the standard. You are giving accreditation in accordance with the law. What the law says you should do. But with clause 3(b), you are setting a standard in collaboration with GTEC.

So, it is not one and the same. Do you still insist?

Question put and amendment agreed to.

Mr Enu: Clause 3, amendment proposed, paragraph (c). *Delete* and *insert* the following:

“(c) supervise accredited universities to ensure continued compliance with the set standards of accreditation;”

Mr First Deputy Speaker: Yes, Hon Members, the proposed amendment is for your consideration.

Yes, Hon Dr Kabiru?

Dr A. K. T. Mahama: Mr Speaker, I am proposing further amendments to the proposed amendment by the Committee in respect of clause 3(i).

Mr First Deputy Speaker: We are now on clause 3(c). The amendment is to use,

“supervise accredited institutions to ensure continued compliance with the set standard of accreditation.”

So, we are not at clause 3 (i) yet.

Dr A. K. T. Mahama: I am guided, Mr Speaker. I thought it was for him to take the whole of clause 3

Mr First Deputy Speaker: No. I will put the Question on clause 3(c).

Question put and amendment agreed to.

5:33 p.m.

Mr Enu: Mr Speaker, clause 3 amendment proposed—

Mr First Deputy Speaker: Clause 3? Your amendment is (f).

Mr Enu: Yes, paragraph (f), line 1, *delete* “Government” and *insert* “Minister”.

Question put and amendment agreed to.

Dr A. K. T. Mahama: Mr Speaker, I am proposing further amendment to clause 3 (i). I am proposing the deletion of “that are not required for immediate use”, and the new rendition will read, “invest the funds of the Council as the Council considers appropriate”. Mr Speaker, the reason for this proposed amendment is to avoid the absurdity of what constitutes what is not needed for immediate use. Because we have already provided for the fact that the Council will

determine as appropriate, it amounts to over-flogging that particular provision by stating that, unless of course, we want to define what it means by “not needed for immediate use”. Otherwise, I prefer that we keep it simple as proposed, “invest the funds of the Council as the Council considers appropriate”. I so move, Mr Speaker.

Mr First Deputy Speaker: The proposal is to *delete* “that are not required for immediate use”, so that the new rendition will be, “invest the funds of the Council as the Council considers appropriate”.

Dr Ayine: We invest money that we do not need for immediate use. That is, a way of making it very explicit that when the Council has idle funds, those funds must be invested.

Mr First Deputy Speaker: So, in all those circumstances, is it not something that the Council is going to consider whether it is appropriate or not appropriate? His argument is that because we are saying the Council must invest as appropriate, it encapsulates the fact that if the money is idle, the Council is supposed to invest it. Because it would be inappropriate to do investments where there is immediate use of the money. That is his argument and supported by the brevity principles, I want to put the question on it.

Dr Ayine: I do not think that deleting it will do any violence to the language. So, I agree. We can delete it.

Question put and amendment agreed to.

Dr F. K. Asamoah: Mr Speaker, I would like to propose an amendment to clause 3 (j). It says, “collaborate with other bodies or organisations within or outside the country that the Council considers necessary to achieve the object of the Council.”. Per the current renditions that I have seen in other Acts, if we can insert the phrase, “collaborate with other relevant” either bodies or institutions.

Mr First Deputy Speaker: So, in the circumstances, who determines whether the body or organisation is relevant?

Dr F. K. Asamoah: That would be the Council.

Mr First Deputy Speaker: What criteria would they use to determine that?

Dr F. K. Asamoah: The Council would use its own standards to determine which one is relevant.

Mr First Deputy Speaker: No, we do not legislate like that. Because I can go to court to say that you are collaborating with this institution, but I feel it is not relevant, so the court should determine it.

Dr F. K. Asamoah: Mr Speaker, the Council would be the one to determine it. I am looking at the Education Regulatory Bodies Act, 2020—

Mr First Deputy Speaker: This says “collaborate with”. I thought you were going to say the Interpretation Act is

clear, so we should not use the word “bodies” or “organisations”, and then we use “persons”, which includes bodies and organisations or the drafters, is that not the way it is? We should use “persons” instead of “bodies and organisations”. Very well. That will happen in the event that they want to collaborate with natural persons. But apart from that, it says, “collaborate with other bodies or organisations within or outside the country that the Council considers necessary to achieve the object of the Council.”. So, once it is here, by Dr Kabiru’s argument, as the Council considers necessary, the Council will not consider any irrelevant body to collaborate with. So, it makes the use of the word “relevant” otiose.

Prof K. Nyarko: Mr Speaker, if you would indulge me to paragraph (g), “evaluate courses” —

Mr First Deputy Speaker: The practice is that if there is an amendment on the Floor, we agree or disagree, whether to put a question or not before we move to another clause.

Prof K. Nyarko: You are right.

Mr First Deputy Speaker: Hon Members, I think we have to leave the rendition as it is. So, this is the point for you to propose any amendment to any other clause.

Prof K. Nyarko: So, on clause 3 (g) I am proposing, instead of “courses of study”, “evaluate curricula provided by accredited institutions” as you said. This is because accreditation institutions do

not normally accredit courses. Normally, it is a curriculum. The curriculum consists of courses and other requirement. So, I am suggesting that—

Mr First Deputy Speaker: Remember, we are saying that it will extend to cover professional training institutions, such as the Law School.

Prof K. Nyarko: No, I am referring to the courses. The rendition now is “evaluate courses of study”, and I am saying that if we could make it “evaluate curricula, instead of courses” —

Mr First Deputy Speaker: Are the training institutions going to have the curricula or they will have courses? Because if you look at clause 62 of the Bill, you can go and look at it, “Law practice training”.

Prof K. Nyarko: Mr Speaker, so maybe that is what pertains to the law programme, but what I know is that we normally do not accredit courses but programmes or the entire curricula. This is because the courses are components of the programme, unless in the law programme, we deal with only courses.

Mr First Deputy Speaker: Because, for instance, at the professional level, what we do is the professional law course. So, we study professional law course, part one and part two, and that is going to be there by way of clause 62 of the Bill. So, I am wondering whether what you are saying should be the right terminology.

Prof K. Nyarko: That is why I am saying, that because it is a legal programme—normally programmes are made up of courses, but if in this case, the legal programme deals with courses, then this rendition would—

Mr First Deputy Speaker: In this context, the legal programme that we are talking about includes LLB and the professional training course and the bar examinations, before a person can be a lawyer.

Prof K. Nyarko: That is why I am saying, that normally the curriculum comprises all the courses, all the activities.

5:43 p.m.

That is why I am saying that normally, the curriculum comprises all the courses that make up the programme.

Mr First Deputy Speaker: So, it is for the consideration of the House. Sponsor, the suggestion is that we should *delete* “course of study” and *insert*—

Dr Ayine: I think we should maintain the language of the Bill. The course of study, Mr Speaker, as you rightly pointed out, if you look at clause 62, is very specific with respect to the courses of study that you need to undertake in order to be able to be certified to write a National Bar Examination. So, it is the courses of study; it is not the entire curriculum that we are dealing with.

Prof K. Nyarko: Mr Speaker, I partially agree with him. But he is my

Senior at the university, and we do not evaluate courses in isolation. We do not do that in isolation; we do it comprehensively. The course is part of a structure. So, when the course is affected, it affects other requirements, and these requirements are also captured in the broader curriculum. That is why I am making this proposition.

Mr First Deputy Speaker: Well, the proposal from the Sponsors is to maintain the language as used in the Bill. If you feel strongly about your proposal, move an amendment.

Prof K. Nyarko: Mr Speaker, I beg to move that in paragraph (g), we *delete* “courses of study” and *insert* “curricula”.

This makes the rendition, “evaluate curricula provided by accredited institutions”.

I so move.

Question put and amendment negatived.

Dr Ayine: Mr Speaker, if you look at clause 3 (k), it seems incomplete. From the original Bill, it was: “perform any other function that is incidental to the achievement of the object of the Council”. But it appears that the sentence is incomplete there.

Mr Enu: Mr Speaker, clause 3 (k) is incomplete, and I want to move that we *insert* “of the object of the Council”. So, the rendition will read: “perform any other function that is incidental to the

achievement of the object of the Council”.

Mr First Deputy Speaker: Thank you very much for that observation. We are grateful, Hon Attorney-General and Minister for Justice.

Question put and amendment agreed to.

Clause 3 as amended ordered to stand part of the Bill.

Clause 4 — Governing Body of the Council.

Mr Enu: Mr Speaker, respectfully, I want to bring something to your attention before I proceed. I want to refer you to Order 170 (d), and subject to your permission, I read:

“where an amendment on the Order Paper exceeds four lines, it shall not be necessary for the Member moving the amendment or the Speaker, in putting the Question, to read out the amendment, if the place in the Order Paper where the amendment appears is pointed out;

Mr First Deputy Speaker: So, what you would say is that: Mr Speaker, I move the amendment as captured. When it exceeds the line, that is what you do.

Mr Enu: Very well. Clause 4, Subclause (1), *delete* and *insert* the following:

“(1) The governing body of the Council is a Board consisting of

- (a) one retired Justice of the Supreme Court or a person who qualifies to be appointed as a Justice of the Supreme Court, nominated by the President, as chairperson;
- (b) three representatives of the Judiciary, one of whom is from the lower bench, nominated by the Chief Justice;
- (c) one representative of the Attorney-General and Minister for Justice not below the rank of a Chief State Attorney nominated by the Attorney-General and Minister for Justice;
- (d) three representatives of the Bar, at least one of whom is not more than seven years’ standing at the Bar nominated by the Bar;
- (e) one representative of the Ministry responsible for Education not below the rank of a Director nominated by the Minister responsible for Education;
- (f) one representative of the Ghana Tertiary Education Commission nominated by the Director-General of the Ghana Tertiary Education Commission;
- (g) three persons who teach law in accredited universities nominated by the Conference of Law Deans; and

(h) the Director-General.”

Mr Boamah-Nyarko: Mr Speaker, clause 4 (1) (a), I want to propose for the deletion of “or a person who qualifies to be appointed as a justice of a Supreme Court”. The proposed rendition would become, “one retired Justice of the Supreme Court nominated by the President as chairperson”.

Mr Speaker, I make this proposal because if we check the appointment that is being considered here, we are looking at a retired Justice of the Supreme Court. So, if we want to create another leg, which suggests another person who qualifies to be appointed, then I think that is a bit problematic. Because in terms of someone to chair the Council, there should be no difficulty in getting a retired Justice of the Supreme Court. And if you link it to an appointment of anybody—

Mr First Deputy Speaker: Hon Boamah-Nyarko, do you know the retirement age of a Justice of the Supreme Court?

Mr Boamah-Nyarko: 70 years.

Mr First Deputy Speaker: So, do you envisage a situation where we will not have a retired Justice of the Supreme Court, and they will all be sitting Supreme Court Justices?

Mr Boamah-Nyarko: Mr Speaker, exactly that is my point.

Mr First Deputy Speaker: So, you do not kick against this rendition?

Because if you kick against this rendition, where it is possible that we do not have a retired Supreme Court Judge, what happens?

Mr Boamah-Nyarko: Mr Speaker, for me, what happens would be for us to appoint someone who is a Supreme Court judge.

Mr First Deputy Speaker: Having regard to the workload of the Supreme Court Judges, that is why they do not want to give this to a sitting judge. So, if the person is retired, then they have the time to do this particular work. But in the event that we do not have any retired Supreme Court Judge, anybody who is qualified to be a Supreme Court Judge, but is not a judge is qualified to be appointed. That is the essence.

Mr Boamah-Nyarko: Mr Speaker, for me, the essence of choosing a retired Supreme Court Judge is because of the experience. We have had our Council of State composition that always have a retired Supreme Court Judge, although we have never envisaged the absence of anyone being a retired Supreme Court Judge. So, Mr Speaker, fairly, I think — and if you check the composition of the Board of Legal Profession Act, 1960 (Act 32), the composition had the Chief Justice as the Chairperson. It is for a good reason.

So, if we are bringing in this Council where a retired Justice of the Supreme Court is supposed to chair, I think there is a bit of a difficulty in relying on any other person who qualifies to be a Justice of the Supreme Court. That is my

thinking. We should be very guided by the previous Acts.

5:53 p.m.

Mr First Deputy Speaker: If care is not taken, having regard to the retiring age, at 70, this is subject to the person agreeing to do it. Somebody who has been a judge and is now 70, having regard to the work of the Council, may decide that, no, I do not want.

So, if among the retired Supreme Court judges, nobody is willing to do this, or in the event that you do not have a retired Supreme Court judge, if you do not have this particular alternative, who else takes the job? Let me give you an example. Hon Samuel Okudzeto Ablakwa is not a retired Supreme Court judge. He has never been a judge. Are you saying that having regard to the number of years that he has spent at the bar, he cannot be? Do you understand? So, let us even say the Rt Hon Speaker is a renowned lawyer. He has never been a Supreme Court judge, let alone being a retired judge. Are we saying that having regard to his experience as a lawyer and a legislator, he is not qualified because he is not a retired Supreme Court judge, and that he does not have the experience? That is why they are saying that a person who is otherwise qualified to be a Supreme Court judge.

Mr Boamah-Nyarko: Mr Speaker, I clearly understand the intendment. But similarly, we can have the Executive or the President appointing a novice of about 16 years as well. *[Interruption]* We are talking about experience? All the

references that Mr Speaker made is legitimate to the extent that you can find an experienced person to chair—

Mr First Deputy Speaker: Hon Boamah-Nyarko, are you listening to what you are saying? A person who is otherwise qualified to be a Supreme Court judge can be referred to as a novice?

Mr Boamah-Nyarko: Mr Speaker, I use that advisedly, so I can withdraw the word novice. I withdraw it accordingly.

Mr First Deputy Speaker: The Constitution gives the power to the President. Are you challenging the constitutional powers of the President? He does the appointment under a particular constitutional provision.

Hon Members, I beg you, let us be careful about some languages that we use.

Mr Boamah-Nyarko: Mr Speaker I am guided, and I think I have withdrawn the word. Yes, I have withdrawn it, and so I think we can make progress. But I have nothing more to say than the extent that the intendment here, getting one retired Supreme Court justice to chair and creating the alternative as another person who qualifies to be appointed to the Supreme Court, and I am referencing it against our old legal provision, where bodies of this nature, we have had even the Chief Justice chairing for good reason. So that is my proposal.

Mr First Deputy Speaker: If you read the entire Bill, you will realise that the work of this particular Council is not

going to be as simple as the General Legal Council, because they are extending, broadening. The work will be very involving. With the General Legal Council, the sitting Chief Justice can afford to do that. But I believe after creating this particular law, if you ask the Chief Justice to be a member of this Council, it is going to be a bit problematic, because you are extending it to even the LLB level. It is not only the Ghana School of Law or the professional law course as usual. You are extending it to other universities who are accredited to do both the LLB and the professional course. So, this will be evolving.

Now, if you do not have this particular clause here, the person may be even a law lecturer for several years of experience, but because the person is not a judge or retired Justice of the Supreme Court, the person is disqualified. Is that what we are talking about? For instance, Professor Kofi Kumado cannot be a chair of this Council? He should be disqualified? My sweet constitutional law lecturer should be disqualified? Yes, Professor Mike Oquaye should be disqualified because he has never been a judge or a retired judge? Please.

Yes, Hon Shaib?

Mr Shaib: Thank you very much, Mr Speaker.

I think it would be fair to find out from the Hon Attorney-General and Minister for Justice the basis for the departure. Because I also believe that there is a clear intendment why the Chief Justice originally is the one who has been

presiding over the Council. And he is active and strong and he is sharp at that point. So, if you are bringing in a retired Supreme Court judge or any other person who is qualified to that level, we should know why. Perhaps if we know why, it would solve all the problems for which we are going around trying to seek answers. If the belief is that maybe the retired Supreme Court judge has no work to do, he has all the time and he is very experienced and that is the basis for which he is the one to be considered, it could be some reasonable response.

Mr First Deputy Speaker: Hon Shaib, did you look at clause 1? It says:

“There is established by this Act, the Council for Legal Education and Training as a body corporate”.

Is this Council not different from the General Legal Council?

Mr Shaib: Mr Speaker, it is, but we also always take a cue. That is the basis for studying history. The reason we do some of these things is to also look at what has transpired.

Mr First Deputy Speaker: For me, I think it is obvious. But if you want the Attorney-General and Minister for Justice to speak, I will give him the floor to do so.

Mr Shaib: Mr Speaker, if you think it is obvious, I do not think it is, respectfully.

Mr First Deputy Speaker: It is obvious. Attorney-General and Minister for Justice, they want to hear your voice.

Yes, Hon Majority Leader?

Mr Ayariga: Mr Speaker, I think there is something there that we should look at. If we are looking for somebody who qualified to be a Supreme Court judge, look for that person. If we are looking for somebody who has already served as a judge at the Supreme Court level, then look for that. But we cannot equate a judge who has served and retired as a Supreme Court judge with somebody who qualifies to be a Supreme Court judge.

So, I think there is something there that we should actually pay attention to. Are we looking for somebody who has gone through the entire system, has been a Supreme Court judge, knows everything, and has now retired? Or are you just looking for somebody who is qualified to be a Supreme Court judge? What was really the intention? Because what somebody who has been a Supreme Court judge already and retired brings to the table is different from what somebody who qualifies to be a Supreme Court judge, which is just 15 years at the bar, brings to the table.

So let us hear from the Attorney-General and Minister for Justice. What experience do they desire for the chairperson of the Council? What kind of person are they looking for, for the chairperson of the Council?

Mr First Deputy Speaker: I will give the floor to the Attorney-General and Minister for Justice, but before doing so, by practice and convention, anytime we talk about a high court judge, we even

say a lawyer who is qualified to be a high court judge. So, this is not the first time in legislation that we are doing that particular analogy. I will give the floor to the Attorney-General and Minister for Justice.

Dr Ayine: Mr Speaker, thank you very much.

Mr Speaker, I think you answered a question earlier when you mentioned Prof C. E. K. Kumado and asked rhetorically whether he could not be the chairperson of this Council when it is established. That is the intendment here. In the discourse leading to the drafting of the provision, we took the view that for a Supreme Court judge to chair, they already have a lot of work on their hands. In fact, the Chief Justice presided over this amendment when I met with the General Legal Council to deliberate on issues affecting this Bill and we came to the conclusion that a retired Supreme Court judge, with the experience that person will have, can chair the Council.

But let us say an academic or a legal practitioner who has many years of experience—The Hon Kwame Anyimadu-Antwi is 30 years at the bar. Why can he not be the chairperson of that Council, if he leaves Parliament? Because apart from being a lawmaker, a legal practitioner, he has also taught law at the Kwame Nkrumah University of Science and Technology Law School. So, these are the kinds of persons we are contemplating.

So, Mr Speaker, I think that we deliberated very well on this matter

before we came to the conclusion that we should seek for qualifications or experience equivalent to that of a Supreme Court judge. But when it comes to the chairperson, we want a retired Supreme Court judge.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Yes, Hon Jerry Ahmed Shaib?

6:03 p.m.

Mr Shaib: Mr Speaker, let me thank the Attorney-General and Minister for Justice for this clarification. But this is where I still have an issue.

Mr Speaker, if we go back to look at it, it says “or a person who qualifies to be appointed as a Justice of the Supreme Court.” We know that several lawyers qualify to be appointed as Supreme Court Justices, some of whom are well known to us. They applied to be Supreme Court Justices but were denied. So, to qualify is not the same as having qualified. Well, it may sound funny to some people, but if one qualifies, it means that one has practised and has been on the bench, and for that reason, one has retired. And that is where the retirement bit comes in.

Mr Speaker, it is okay for this House to allow people to listen to their views. This is practical. We should be looking at what the basis for that qualification is and how many years one has practised. I know some of the names that were mentioned here were more than qualified, but they were rejected. But

how is the person qualified if the person has been rejected?

Mr First Deputy Speaker: Hon Second Deputy Minority Whip, what is the constitutional language in qualification to the Supreme Court? Is it a person who is qualified or a person who qualified? Sometimes you cannot be wrong using the constitutional language. The fact that you qualified, applied, and were declined does not mean you are not qualified. Other factors are taken into consideration.

Mr Boamah-Nyarko: Mr Speaker, just to seek the Attorney-General’s consideration, if the challenge for a retired Justice of the Supreme Court is what is difficult, can we consider one retired Justice of the Superior Court? The Superior Court comprises the High Court, the Court of Appeal, and the Supreme Court. If we say retired, any of them would have been on the bench for like 10 years, inclusive of their appointment to the High Court or Court of Appeal, and that gives us a bigger room to choose from.

My concern is about the level of experience we want to bring to the table to chair that Council. My counterproposal is one retired Justice of the Superior Court.

Mr First Deputy Speaker: So, let me ask, if you make the rendition like that, what happens to somebody who has never been a judge, but yet can perform that function?

Mr Boamah-Nyarko: But Mr Speaker, once we had—

Mr First Deputy Speaker: No, you are not answering my question. I asked that, if your rendition is anything to go by, what happens to someone who is not a judge but has the experience and is qualified to occupy the position?

Mr Boamah-Nyarko: If the President, in appointing someone, has a plethora of people to choose from, what is our difficulty if the President can find a retired justice and not have to take from anybody who has a couple of years at the Bar, particularly when the first leg of it is a retired justice of the Supreme Court? So that is the level we are looking at.

Mr First Deputy Speaker: Hon Members, I think the rendition as it is, is qualified. Particularly, I do not have any counter amendment.

Clause 4 as amended ordered to stand part of the Bill.

Clause 5 — Functions of the Board

Mr Enu: Mr Speaker, Clause 5 – Amendment proposed - *Delete* entire clause and *insert* the following:

“Functions of the Board 5.

(1)The Board is, subject to this Act, responsible for the strategic direction of the Council.

(2)Without limiting subsection (1), the Board shall ensure

(a)the achievement of the object of the Council; and

(b)the effective and efficient performance of the functions of the Council.”

Mr First Deputy Speaker: Hon Member, do you have an amendment to clause 5?

Mr Boamah-Nyarko: Mr Speaker, please hear me, we did the (a) of clause 4 and I had—

Mr First Deputy Speaker: Hon Member, we are on clause 5. I really do not like what you are doing. I really do not like the behaviour you are putting up. It is not the best. In the amendment process, you do not insist. Even when everybody feels that you are wrong, you are still insisting. We move to clause 5; you are taking us back to clause 4.

Hon Member, in the circumstances, resume your seat.

Question put and amendment agreed to.

Clause 5 as amended ordered to stand part of the Bill.

Clause 6—Tenure of office of members of the Board.

Mr Enu: Mr Speaker, Clause 6 – Amendment proposed – subclause (2), line 1, *delete* “Registrar” and *insert* “Director-General”.

Clause 6 — Amendment proposed — subclause (4), line 1, *delete* “Registrar” and *insert* “Director-General”.

Mr Darko: Mr Speaker, on clause 6(3), it reads,

“A member of the Board may at any time resign from office in a writing addressed to the President through the Minister.”

I propose we make it open because we have situations where institutional representatives are involved; in those cases, they should be able to write their letters to the institutions that appointed them. The Leader is saying that the letter to the institution is not necessary and that it should go to the President.

Well, I believe that even though it is the President who does the appointment, it is the institution that nominates persons for appointment. So, the person resigning should be able to write to the institution that, because it is the institution that will bring a new person to represent them. I believe the letter to the institution will be a good thing. The new rendition should read, “a Member of the board may at any time resign from office in a written address to the institution that nominated the said person”.

Mr First Deputy Speaker: I do not get your amendment. Which of the provisions are you amending? Are you talking about 5?

Mr Darko: Mr Speaker, I am talking about clause 6(3). I understand the argument that, under Article 70, the

President ultimately appoints, but the institution that nominates the person should be the recipient of the person’s resignation letter.

Mr First Deputy Speaker: Well, clause 3 says that

“A member of the board may at any time resign from office in writing addressed to the President through the Minister.”

So the President is the appointing authority.

Mr Darko: I am saying that there are institutional executives—

6:13 p.m.

Mr First Deputy Speaker: Listen to me. So, such a person, the law makes provision for replacements so if you are appointed to serve the interests of Parliament and you have written to the appointing authority that you no longer want to represent Parliament on that particular board, the appointing authority will write a letter to the institution to bring another person to replace you.

That is why, if you read further, there is a provision for how those people are supposed to be replaced.

So, your concern has been addressed. Once it is institutional representation, if you are not there, it is the institution that must bring — So, a vacancy is created, and once a vacancy is created, the appointing authority must get the nomination from that particular

institution, irrespective of whether you write to the institution or not. So, what happens if you are representing, for instance, the Ministry of Roads and Highways on a board, and you have decided to resign from the Committee, and you have not communicated it to the Ministry of Roads and Highways?

Mr Darko: Exactly the point I am making, Mr Speaker. So, we are on the same wavelength.

Mr First Deputy Speaker: But you are not appointed by the Ministry of Roads and Highways to serve on that particular Committee; you are appointed by the President.

Mr Darko: All right, Mr Speaker, just allow me. I am ready to concede if I am convinced. But my point is that, if an institutional representative is resigning, would it not be okay that he informs the institution that appointed him, and then the institution would tell the President that a member has resigned, instead of writing to the President through the Minister, before it gets to the institution that sent the person there?

Mr First Deputy Speaker: This particular law sets out the requirement that A must come from this institution, and B must come from this institution, and at the end of the day, they are all appointed by the President. So, the President is the appointor. The President, being the appointor, knows the composition of that particular board. So, if you, in particular, are serving the interests of Environmental Protection Authority (EPA), and your

communication is with the President that you no longer want to serve that particular interest of the person who appointed you, all that the President will do is to request EPA to bring another person. So, the information will come from the President to the EPA. I will put the question on Clause 6.

Clause 6 as amended ordered to stand part of the Bill.

Clause 7 — Meetings of the Board

Mr Enu: Mr Speaker, we have not taken the amendment of clause 6 (4).

Mr First Deputy Speaker: Yes, I have taken the consequential amendment.

Mr Enu: Very well.

Mr First Deputy Speaker: Yes, Chairperson of the Committee?

Mr Enu: Mr Speaker, clause 7 (1), line 1, *delete* “two” and *insert* “three.”

Mr First Deputy Speaker: It is for the consideration of the House. Hon Members, in the absence of any further amendment, I put the question.

Question put and amendment agreed to.

Mr First Deputy Speaker: Yes, Chairperson of the Committee?

Mr Enu: Mr Speaker, clause 7 (4), line 1, *delete* “six” and *insert* “seven”.

Mr First Deputy Speaker: It is for the consideration of the House, Hon Members, in the absence of any further amendment, I will put the question.

Question put and amendment agreed to.

Mr Enu: Mr Speaker, we have a new clause.

Mr First Deputy Speaker: I thought this is part of the amendment of clause 7.

Hon Members, I will then put the question on the entire clause 7.

Clause 7 as amended ordered to stand part of the Bill.

Mr Enu: Mr Speaker, there are new clauses, amendment proposed. Insert the following new clauses after Clause 10 —

Mr First Deputy Speaker: Well, Chairperson, if that is the case, we have to take clauses 8, 9 and 10 before taking the new clause.

Mr Enu: Very well, Mr Speaker.

Clause 8 to 10 ordered to stand part of the Bill.

Mr First Deputy Speaker: Now, Chairperson, your proposed amendment.

Mr Enu: Clause 11, there is no proposed amendment.

Mr First Deputy Speaker: On the *Order Paper*, you are proposing a new clause which will come after Clause 10.

Mr Enu: Yes, Mr Speaker. The new clause Amendment proposed.

Insert the following new clauses after clause 10:

“Director-General of Legal Education

The President shall, in accordance with article 195, appoint a Director-General of Legal Education.

The Director-General shall hold office on the terms and conditions specified in the letter of appointment.”

Mr First Deputy Speaker: Hon Members, this is a standard provision. It is for the consideration of the House.

Dr Asamoah: Mr Speaker, the amendment is saying “Director-General of the Legal Education”. But if we look at the current renditions that we have passed in this House, it is more of an appointment of the Director-General. Also, if we go down to sub-clause 1, instead of saying “appoint a Director-General of Legal Education”, we can also make it “appoint the Director-General of the Council”, as has been done in the recent renditions that have been passed.

So, instead, I am proposing that the new clause —

Mr First Deputy Speaker: Hon Kyei, the Director-General, is it the Director-General of the Council? The Council is the governing body, but we have a legal education, and they are appointing a

Director-General for that legal education.

Prof Nyarko: But if we look at the Memorandum, it talks about establishing the Council for Legal Education and Training. So, that is the umbrella body. So, if we are appointing a Director-General, it should be a Director-General for the Council for Legal Education and Training. You cannot just say, “Director-General for Legal Education”.

Mr First Deputy Speaker: Chairperson of the Committee or the Attorney-General, once we are here as a Sponsor—

6:23 p.m.

Mr Enu: Mr Speaker, I believe that the rendition should be fine. The Director-General, of course, is being appointed under the board, and I think it is convenient.

Mr Anyimadu-Antwi: Mr Speaker, I should think that the Director-General here would act as the chief executive. So, the council must have a chairman. But if we read the next section, it says that “the Director-General shall be responsible for the day-to-day running of the institution”.

So, we can have it there. I think what is there is right. The chairman must be, not the Director-General for the council, he could be a member of the council, but the Director-General is in charge, like the chief executive of an institution. So, that is right.

Dr Ayine: Mr Speaker, currently we have the Director of Legal Education. The Director of Legal Education is the head of the Ghana School of Law. But because we are creating a whole council that will decentralise the professional legal education to the universities, we thought it wise to elevate that person to a Director-General status, and that will be the Director-General of Legal Education as captured in this Bill. So, I think this rendition should stay.

Mr Anyimadu-Antwi: Safe to add that there must be a head note of this new clause that should be “Appointment of the Director-General of Legal Education”. So, I will move that there should be a head note, “Appointment of the Director-General”.

Dr F. K. Asamoah: Looking at clause 1, it says that “There is established by this Act, the Council for Legal Education and Training as a body corporate”. The head of this corporate body, I believe, is going to be this Director-General. He is not going to be just a head of a part of this body or a head of a department. So, can they tell us who is going to be the head of this corporate body? That is why I ask that we have the head note of the Appointment of the Director-General. Then, also appoint Director-General of the Council.

Dr Ayine: If the Hon Member had read clause 12 (1):

“The Director-General is responsible for the day-to-day administration of the Council.”.

So, it puts the Director-General as the one that manages the day-to-day affairs of the Council, but the Director-General is the Director-General of Legal Education, not the Director-General of the Council.

Mr First Deputy Speaker: So, Hon Kyei Asamoah, a Council has been established, and that Council is responsible for legal education in the country. The Director-General will be responsible for the day-to-day administration of the Council that is responsible for legal education in the country. Your problem is why is that person being called Director-General of Legal Education but not Director-General of the Council. Is that your problem? Well, I would say this is just a nomenclature. Yes.

Mr Ayariga: Mr Speaker, we have an Act of Parliament establishing the Council for Scientific and Industrial Research (CSIR). It has a Council, which is the governing body, same way that we have a Council that is the governing body of legal education. We have a Director-General. The Director-General is not the Director-General of the Council, he is the Director-General for, CSIR. So that is how it is structured.

The Council, as a Council, is simply—when we say Council for Legal Education, that encompasses the gamut of work that is involved in running legal education. Then there is Council as the governing council of legal education. So, the Director-General is not like a secretary of the Council. The Director-General will serve that function and very

often we say he is a secretary at a meeting of the Council, or we even make him a member of the Council. But he is the Director-General of Legal Education. So, he does the day-to-day work, he does everything, he is the administrator, all the staff that perform the administrative work are under him, and he now answers to the Council; that is how it is structured. So, we can never have the Director-General of a Council. It is the Director-General of Legal Education.

Mr First Deputy Speaker: So, Hon Kyei Asamoah, what do you propose that the Director-General be called?

Dr F. K. Asamoah: Before I come there, we have the governing body, which has been stated here as the body.

Mr First Deputy Speaker: What do you propose that the Director-General be called? If not a nomenclature, just do your proposal.

Dr F. K. Asamoah: So, I am proposing that we have the headnote, “Appointment of the Director-General”, first. I am also proposing that we appoint a Director-General of the Council since we have a governing board, that is going to take care of the Council. Because we have a corporate body that has been established, and since the corporate body that has been established— if we look at clause 1, the body that has been established here is the Council—

Mr First Deputy Speaker: I see your argument. By this law, do we have legal education?

Dr F. K. Asamoah: Legal education is part of what the Council will do. Because the entity that we are having a Director-General for is not just for a part of it.

Mr First Deputy Speaker: Would it not sound better to say a Director-General of Legal Education than a Director-General of the Council? Because the name depicts what the person is going to do. How do you say Director-General of the Council when the Council is responsible for legal education? So, if you mention that person to be a Director-General of Legal Education, it is far better than saying a Director-General. This is because he is going to be in charge of the day-to-day running of legal education anyway.

Dr F. K. Asamoah: If we should state “Director-General of the Council for Legal Education and Training”, then I will agree. But if you state Director-General of just legal education, that is where—

Mr First Deputy Speaker: Well, propose an amendment and let me put a question.

Dr F. K. Asamoah: The amendment I am proposing here, Mr Speaker, is to have the headnote, “Appointment of the Director-General”, then secondly, we have the “Appointment of the Director-General of the Council for Legal Education and Training”, if that is the corporate body.

Question put and amendment negatived.

6:33 p.m.

Mr First Deputy Speaker: Hon Members, honestly, I do not have a problem if the headnote is Director-General, then the body goes to state,

“The President shall in accordance with Article 195, appoint a Director-General of Legal Education. The Director-General shall hold office on the terms and conditions specified in the Letter of Appointment.”

So, if the premise of the law says this is how you want to be called —

Mr Anyimadu-Antwi: Mr Speaker, I would love that we go with the appointment of Director-General. This is because if we just title it Director-General, then we do not need the next one, which talks about the functions of the Director-General.

Mr First Deputy Speaker: Yes, that is fine. We can add the appointment to it. I will agree to that.

Mr Anyimadu-Antwi: So, the appointment of Director-General must be the headnote.

Mr Ayariga: Mr Speaker, I do not think the clauses that follow deal only with appointment. I think the clauses that follow deal with so many other issues. So, we cannot limit —

Mr First Deputy Speaker: And all those issues relate to the Director-General. So, we can make the headnote Director-General.

Mr Ayariga: We have to leave it as Director-General for Legal Education. Then we would have a clause that deals with appointments, functions, and several other issues. So, it is generally, Director-General of Legal Education, then all the clauses pertaining to that office will follow. But if we should say appointment, then we are restricting ourselves to just appointment.

Mr First Deputy Speaker: Hon Members, because it is an insertion, and then clause 11 also deals with Director-General of Legal Education, I will direct the drafters to rearrange and put the provisions in their deserving places. So, the drafters will take note and do this for us.

Clause 11 — Director-General of Legal Education

Mr Enu: Mr Speaker, I move that the entire clause be deleted and —

Mr First Deputy Speaker: Hon Member, move the amendment correctly. Because the new clauses are in 1, and there is also a new clause in xiii on the Order Paper. So, move xiii.

Mr Enu: Mr Speaker, I move that after clause 10, the following clauses be inserted, as per page 7 and 8 on the Order Paper.

Mr First Deputy Speaker: Hon Members, amendment at page 7, item numbered xiii is moved by the Chairperson of the Committee, and it is for the consideration of the House.

Hon Members, in the absence —

Mr Darko — *rose* —

Mr First Deputy Speaker: Let me hear you first.

Mr Darko: Mr Speaker, that would be the functions of the Director-General. Is that what you are looking at?

Mr First Deputy Speaker: Yes.

Mr Darko: Mr Speaker, I am looking at the new clause (1)

(2) Without limiting subsection (1), the Director-General shall

“(1) evaluate foreign legal qualifications for equivalence and facilitate reciprocal arrangements with institutions in analogous jurisdictions;”

Mr Speaker, I will propose that this particular function be given to the Council. I say so because I think that to leave this job of evaluating foreign legal qualifications to the Director-General alone would not be a good idea, and that if this is given to the Council, the Council would do a better job than to leave the Director-General alone to evaluate foreign legal qualifications. And so, I propose that this particular provision be moved to the functions of the Council.

Mr First Deputy Speaker: Well, Hon Attorney-General, he is saying that the evaluation should be done by the Council rather than the Director-General. That is the new clause (1).

Dr Kabiru Mahama?

Dr A. K. T. Mahama: Mr Speaker, my sense is that we are on clause 11 but his proposal is clause 12.

Mr First Deputy Speaker: Clause 11 is the work done by the Winnowing Committee, which has integrated the proposed amendment by the Committee. So, I even advised the Vice-Chairperson of the Committee that, in moving the amendment, he should say, as captured by the Winnowing Committee in clause 11. But he chose to go by the *Order Paper* instead of what I told him. That is what is making Hon Members confused. Because the document that we have before us has the integration of the amendment into the Bill.

So, the entire clause 11 has taken into account the proposed amendments. Then, with the functions, what we are considering now is in clause 12, per the work done by the Winnowing Committee. Then the appointment of the registrar, which used to be initial clause 11, has now become clause 13.

Dr A. K. T. Mahama: Mr Speaker, therefore, we should have been moving the amendment in respect of clause 11, and when we pass it, then we go to clause 12 in that order.

Mr First Deputy Speaker: Yes, because this one has done the

rearrangement already. That is why yesterday I admonished Hon Members that we should be proposing further amendments in line with the work done by the Winnowing Committee. You can move the whole clause 11, as proposed by the Committee and adopted by the Winnowing Committee, so that Hon Members will now base their amendment on what is in this law. Then we come to clause 12.

6:43 p.m.

Mr Anyimadu-Antwi: Mr Speaker, I am almost getting confused. I think what the Chairperson is doing is apt. He has the *Order Paper* and it has been advertised. He moved them as new clauses. He has moved a second clause. This new one, which is an incorporated one, is a guide.

So, Mr Speaker, so far as this House is concerned, this document is not known. Let us go by that. We are almost there, and—

Mr First Deputy Speaker: You see, Hon Anyimadu-Antwi, that is the problem I have with you. What is the essence of the Winnowing Committee? The Winnowing Committee is supposed to invite all those who have a proposed amendment to a Bill, agree or disagree with them. Now whatever they have agreed upon then becomes a component of the Bill and whatever has been disagreed is brought to the House. That is what Order 168 is saying. That was why yesterday, I advised that if such be the case, once these amendments have been integrated into the Bill, let the

House look at the integrated amendment and carry out further amendment on the integrated amendment. And we urged Members to take a copy of the integrated amendment. That was what informed my advice to the Chairperson of the Committee, to do the proposal as captured by the Report of the Winnowing Committee in Clause 11, then Clause 12 as captured by the Winnowing Committee in Clause 12. So that any Member who has a further amendment to the work of the Winnowing Committee, the Member will then proceed to do the amendment. Other than that, we risk the chance of Members doing their proposed amendment based on the Bill before the Winnowing Committee. That is what is causing the confusion.

Yes, Hon Majority Leader?

Mr Ayariga: So, my understanding is that we are at Clause xiii.

Mr First Deputy Speaker: Yes, which is the Clause 11.

Mr Ayariga: Which is?

Mr First Deputy Speaker: No, the xiii is the Clause 12 of the Bill.

Mr Ayariga: Yes, so Clause xiii, which is now Clause 11.

Mr First Deputy Speaker: No, it is now Clause 12. Xiii is dealing with the functions of the Director-General. Clause 12.

Mr Ayariga: Yes, so that is what I am talking about. So, xii is Clause 11, xiii is Clause 12.

Mr First Deputy Speaker: Yes.

Mr Ayariga: So, the issue is that he should move according to—

Mr First Deputy Speaker: So, we just dealt with Clause 11.

Mr Ayariga: We are done with Clause 11.

Mr First Deputy Speaker: Yes.

Mr Ayariga: So, he should move Clause 12. We are now at Clause 12. Yes, it is not confusing. No, but that is what we have been doing since we started. And everybody is using the incorporated Bills. So, all the proposed amendments that their Side has been moving is based on the amended incorporated Bill that we are working with.

Mr First Deputy Speaker: Hon Members, the first new insertion is under the headnote Director-General, Legal Education. That was what Hon Kyei Asamoah proposed an amendment to and to which I put a question and the amendment was lost. So, we are now moving to Clause 12, which is on the *Order Paper* as xiii, dealing with the functions of the Director-General. So that is where we are now.

Mr Darko: Mr Speaker, he moved it and I proposed an amendment. And so,

the amendment was for the consideration of the House.

Mr First Deputy Speaker: Yes, so we are now at Clause 12, which is on the *Order Paper* as xiii.

Yes, Dr Kabiru Tiah Mahama, why are you saying no?

Dr A. K. T. Mahama: Mr Speaker, I said no because when the proposed amendment by Dr Kyei Asamoah was put, it was not carried. We did not put the motion to vote on the whole of xi. And I have amendments in respect of xi.

Mr First Deputy Speaker: Very well. Then let us come back to xi and so you can propose your amendment.

Dr A. K. T. Mahama: Mr Speaker, I propose, after “legal education”, *insert* “and training”. The new rendition would then read:

“The President shall, in accordance with Article 195, appoint the Director of Legal Education and Training”.

Mr Speaker, I make this amendment because the Council in which the Director-General is supposed to carry out their day-to-day administration, is a Council for Legal Education and Training. If we omit the training aspect, I do not think it is going to serve any useful purpose. So, I am proposing that we *insert* “and training”, to read “Director-General for Legal Education and Training”.

Mr First Deputy Speaker: Yes. Hon Members, he is speaking from Clause 1 of the Bill. So, I intend to put a question.

Question put and amendment agreed to.

Clause 11 as amended is ordered to stand part of the Bill.

Mr First Deputy Speaker: Now, let us proceed to Clause 12, which is amendment advertised as xiii, integrated.

Yes, Hon Anyimadu-Antwi?

Mr Anyimadu-Antwi: Mr Speaker, with the greatest respect, I think that there is a Bill that is laid before this House. And that is what we are working with. It is because of this Bill that we have proposed amendments in the *Order Paper*. We cannot use the *Order Paper* and use the guide that the Winnowing Committee has given us. That is only a guide. So let us go by the numbering in the law, the law as filed in this House, together with the *Order Paper*, and then it will be on all fours.

Mr Ayariga: Mr Speaker, there is no disagreement here. That is why Mr Speaker asked the Chairperson to move item xii. He is not saying he should move 11 in the incorporated Bill. He should move xii. But it is to facilitate understanding by Members that is why we said that any time the Chairperson moves the amendments here, do not focus on this one. Go to the incorporated document. It makes easy understanding. So, I do not want the Hon Member to labour under some impression that we are working with—The amendment that

is taking place is focusing on the incorporated document. *[Interruption]*

Mr First Deputy Speaker: You see, Hon Majority Leader, let me explain it to the understanding of Hon Anyimadu-Antwi. We have a Bill that has been introduced to the House. There were several amendments which we referred to the Winnowing Committee, and the Winnowing Committee came out with this guide. So, once I ask the Chairperson to move amendment in xiii, because I ask the Members to propose, if any, amendments as captured by the Winnowing Committee, which is the same as the advertised amendment, it is easier when I refer the Members to the provision of that amendment as it is in what is captured by the Winnowing Committee.

Which makes it so easy. Because if I do not do that, they will be looking at the old one and be providing an amendment to what the Winnowing Committee has not worked on. But now the amendment is on the amendment as proposed by the Winnowing Committee. So, it makes it so easy. So, the amendment the Chairperson will carry is the same as in clause 12 of the Winnowing Committee's Bill. If Members now want to propose amendments, they will be proposing amendments to clause 12, which makes it easy for Members.

6:53 p.m.

Mr Enu: Mr Speaker, I beg to *move*: New clause – Amendment proposed – *Insert* the following new clause after clause 10:

“Functions of the Director-General

- (1) The Director-General is responsible for the day-to-day administration of the Council.
- (2) Without limiting subsection (1), the Director-General shall
 - (a) advise the Board on matters relating to legal education;
 - (b) supervise and coordinate the activities of Registrars, Directors and other employees of the Council;
 - (c) oversee the accreditation process and monitor compliance by accredited universities with the requirements of this Act, Regulations made under this Act and administrative instructions issued by the Council;
 - (d) monitor admission processes across accredited universities to ensure fairness, transparency and non-discrimination;
 - (e) lead the development and periodic review of curricula for the law programme in consultation with accredited universities;
 - (f) promote the integration of information technology, digital resources and innovative pedagogical methods in legal education;

- (g) conduct regular inspections of accredited universities to ensure the maintenance of quality assurance standards in legal education;
- (h) organise training programmes and professional development initiatives for law lecturers and other officials and stakeholders involved in legal education;
- (i) develop and maintain partnerships with local and international legal education bodies and academic institutions;
- (j) establish and maintain partnerships with regulatory bodies, faculties of law, the Judiciary, law firms, law associations, public sector agencies, other legal sector institutions and relevant stakeholders;
- (k) represent the Council in national, regional and international forums, conferences, and meetings relating to legal education;
- (l) evaluate foreign legal qualifications for equivalence and facilitate reciprocal arrangements with institutions in analogous jurisdictions;
- (m) prepare and submit to the Board for approval the annual budget, strategic plans and reports of the Council;

- (n) ensure the maintenance of financial records and accounts of the Council in accordance with applicable laws;
- (o) sign or authorise the signing of contracts, agreements, and other instruments on behalf of the Council in accordance with guidelines approved by the Board; and
- (p) perform any other function assigned by the Board.

- (3) The Director-General may delegate a function under subsection (1) to an employee of the Council, but is not relieved of ultimate responsibility for the performance of the delegated function.”

Mr First Deputy Speaker: Yes, Prof Kingsley Nyarko.

Prof Nyarko: Mr Speaker, so clause 12 (2)(g) should read,

“conducts regular inspections of accredited institutions to ensure the promotion and maintenance of quality assurance standards and practises in legal education.”

We have quality assurance, standards, and practices. The practices help us to achieve the standards. We cannot rely on standards alone. That is why I propose that it be,

“conduct regular inspections of accredited institutions to ensure the

promotion and maintenance of quality assurance standards and practices in legal education.”

I so move.

Mr First Deputy Speaker: So, you are proposing that after the second line there, you *insert* “promotion and”?

Prof Nyarko: So, after “ensure”, we *insert* “promotion and maintenance of quality assurance standards”, then after “standards”, *insert* “and practices in legal education”.

Mr First Deputy Speaker: So, your first amendment on promotion is correct. Do you promote quality assurance standards or maintain them?

Prof Nyarko: Mr Speaker, we promote quality assurance standards. Every institution has to promote quality assurance standards. They set the standards and promote them, and they also have practices that will help you to achieve them.

Mr First Deputy Speaker: I thought you set the standard and maintain the standard that you set.

Prof Nyarko: But we need to promote standards in institutions. You do not only set them.

Mr First Deputy Speaker: So, Prof Nyarko, how are you going to inspect the promotion? Because if you read this law, it says,

“conduct regular inspection of accredited institutions to ensure the maintenance of quality assurance standards in legal education”.

Because the standard has already been set, you are going to carry out an inspection to ensure the maintenance of the standard that you have set.

So, in the circumstances, because of the words you use here, “inspection of the standard” that you have set, how will promotion come in?

Prof Nyarko: Mr Speaker, the idea is that you set standards, but standards should be promoted, and compliance must also be enforced.

Mr First Deputy Speaker: That is why we accepted your amendment earlier. But here, you are going to conduct regular inspections, and in the process of conducting inspections, you ensure maintenance of the standard that you have set. So, in the process of conducting an inspection, how are you going to promote?

Prof Nyarko: Mr Speaker, I hear that one, but I suggest that we also *insert* “quality assurance practises”. From where I used to work, if one has the standards, there should be a process that will help them achieve the standards. The standards alone cannot help one achieve the results. That is why we have quality assurance practises.

I suggest we delete the “promotion” and replace it with:

“Conduct regular inspections of accredited institutions to ensure the maintenance of quality assurance standards and practises in legal education”.

Mr First Deputy Speaker: So, Hon Members, the proposal is that after “standards”, introduce “practices” in line 2. So, the new rendition will read,

“Conduct regular inspections of accredited institutions to ensure the maintenance of quality assurance standards and practices in legal education”.

Question put and amendment agreed to.

Prof Nyarko: Mr Speaker, on paragraph (h), I propose that instead of “officials”, we *insert* “staff”, so the rendition will be,

“Organised training programmes and professional development initiatives for law lecturers and other staff and stakeholders involved in legal education”.

Mr First Deputy Speaker: Are the members of the governing body staff?

Prof Nyarko: Mr Speaker, you are right. I yield to you. My last one on this is paragraph (n).

“Ensure the maintenance of financial records and accounts of the council in accordance with applicable laws”.

I think that if it is possible, we should look at ensuring the preparation of financial records and accounts of the Council in accordance with applicable laws. Thank you.

Mr First Deputy Speaker: No, this one is talking about the maintenance of the accounts.

Prof Nyarko: Yes, well, I saw the maintenance of financial records, but I am thinking that preparation of the records and accounts can also be done according to applicable laws.

Mr First Deputy Speaker: By the Director-General. Is it the Director-General who is to prepare the accounts?

Prof Nyarko: The accounts are prepared by the Finance Director, but in the name of the Director-General.

Mr First Deputy Speaker: Let us look at this way. If we look at the accounts prepared by the institutions, they are not prepared by the Director-General; they are prepared by the institutions themselves. Do you understand? That is the context in which we look at the preparation of the accounts. But this one, we are talking about the functions of the Director-General.

Prof Nyarko: Mr Speaker, I agree with you, but if we look at the preceding paragraph, per your logic, then preparation and submission to the Board for approval—So there is a mistake with that. Prepare and submit to the Board for approval the annual budgets, strategy plans and reports of the Council. Per your logic, then the Director-General does not have any low-cost way of dealing with the budget.

Mr First Deputy Speaker: Yes, because you see, the records and accounts are different. When you prepare the budget for consideration of the Board, and the Board has so considered it, it then becomes the document of the Board. Do you agree with me? Once the Board has approved it, it becomes a document of the institution.

7:03 p.m.

Prof Nyarko: I wish to withdraw my proposed amendment. I am fine, thank you.

Mr First Deputy Speaker: Very well.

Yes, Hon John Darko?

Mr Darko: Mr Speaker, my earlier proposal had to do with (l), which mandates the Director-General to evaluate foreign legal qualifications for equivalence and facilitate reciprocal arrangements with institutions in analogous jurisdictions.

Mr Speaker, my proposal was that this particular function be moved to the

functions of the Council, because what we are doing is that we are giving one person the power to evaluate foreign legal qualifications. I suggest that the function be given to the Council of Legal Education.

Mr First Deputy Speaker: Yes, Hon Majority Leader?

Mr Ayariga: I do agree that the Director for Legal Education can evaluate foreign legal qualifications for equivalences, but he cannot facilitate reciprocal arrangements. That is not really a power that the Director for Legal Education should have. And I do not know if even the Council alone can have that power. I believe this is a matter that falls within the remit of the Commission, GTEC. So, I think we should limit it to the Director General making recommendations to the Council, but not the one directly making the reciprocal arrangements, because reciprocal arrangements— does that mean arrangements for both sides to recognise the degrees of either side? If we say reciprocal, it implies that the Director General of Legal Education, on his own, can arrange and evaluate equivalences and then indicate that both sides should recognise the equivalences that he has evaluated. But I think that he should not have the power to be the one to determine the recognition of the equivalences. It goes beyond him, either the Council or the GTEC.

Yes, so I agree with him. But he is saying we should send the entire function, and I am saying that there are two functions there. There is a function

of evaluation of the equivalences that we can preserve. But making the reciprocal arrangements, I am saying, should not be the preserve of the Director General. But he can do the evaluations all right. But he has to make a recommendation to a higher body, which is the Council, for approval of the equivalences.

Mr First Deputy Speaker: Yes, Attorney General and Minister for Justice?

Dr Ayine: Yes, Mr Speaker, I think I agree with the Hon Majority Leader. In clause 3(g), the same function is granted to the Council, basically, because it says,

“to evaluate courses of study provided by accredited universities, now institutions, to accord with appropriate recognition of legal qualifications obtained in institutions in other common law jurisdictions, with analogous legal systems as Ghana, for purposes of admission to the bar”.

Mr First Deputy Speaker: So, is it the case that we should *delete* the entire clause 12 (l) because it is already in clause 3?

Dr Ayine: The job of evaluation has been granted to the Council. So, I think we should delete (l).

Mr First Deputy Speaker: So, Hon Member, can you move the appropriate amendment, so, I put the Question?

Mr Darko: Mr Speaker, I therefore move that clause 12 (l) is *deleted*.

Question put and Motion agreed to.

Clause 12 as amended ordered to stand part of the bill.

Clause 13 — Appointments of Registrar

Mr First Deputy Speaker: Yes, Vice Chairman of the Committee?

Hon Members, clause 13 is the original clause 11, and there is no advertised amendment.

Mr Darko: Mr Speaker, I propose that we *delete* “the President” and *insert* “Council” such that the new rendition will read, “Council shall appoint a Registrar for the Council.”

Mr Speaker, I am saying this because I am looking at the appointment of a Registrar of an institution. Why should that be given to the President? The President has a lot of things. In fact, he may have better things to deal with than to concern himself with the appointments of Registrars of institutions.

I have served on the University Councils, where the Council has always advertised and appointed Registrars for the institution. And we have never had a situation where even the Vice-Chancellor is involved, let alone the President.

Mr Speaker, if you look at the fact that even the functions of the Registrar in clause 14, his first responsibility is that he is answerable to the Director General,

and this person is going to be appointed by the President, I believe that if we make the Council appoint the Registrar, it will be in order, instead of asking the President to come all the way down to appoint Registrars.

I so move.

Mr First Deputy Speaker: What does Article 195 say?

Dr Ayine: Mr Speaker, let me assist the Hon Member for Suame.

Mr First Deputy Speaker: Very well, they want to assist you.

Dr Ayine: Yes, I do want to assist him. I think he has a legitimate point. It was an oversight on our part because if you look at Article 195(3), it says:

“The power to appoint persons to hold or act in an office in a body of higher education, research or professional training shall rest in the Council or other governing body of that institution or body.”

So, I think that he is right. In the case of the Registrar, it should be the Council appointing him.

Mr First Deputy Speaker: I asked what Article 195 says, because I know the solution to the problem is provided in Article 195.

Mr Darko: You want me to react?

Mr First Deputy Speaker: No, I was expecting you to do what he said. In moving your amendment and in giving the justification. He has given the justification for your amendment, and everybody will agree with you. That is why I was asking what Article 195 says. In matters like this, it should not be the President who should be appointing, but you did not support it with the provision and that is why I was asking, which clarifies the situation.

Mr Darko: Mr Speaker, I think that my point has been supported by the Attorney-General, and it is very clear that —

7:13 p.m.

Mr First Deputy Speaker: You realise that he used Article 195(3), which makes it very clear.

Mr Darko: Yes, the power to appoint Registrars should not lie in the hands of the President.

Mr First Deputy Speaker: Yes, tertiary institutions lie with the Council. If you look at all the University Bills that we have created, the appointment of the Registrar is not an exclusive preserve of the President under Article 195 because of Article 195(3).

Mr Darko: So, my amendment stands. *[Pause]*

Mr First Deputy Speaker: Hon Member, propose the amendment and let us move on.

Mr Darko: My proposal will be “the Council shall, in accordance with Article 195, appoint a registrar for the Council.”.

Mr First Deputy Speaker: Yes, Attorney-General and Minister for Justice, what do you say?

Dr Ayine: If it is in “accordance with Article 195 (3) of the Constitution, appoint a registrar of the Council”, that should be fine.

Mr First Deputy Speaker: So, the new rendition is that “The Council shall, in accordance with Article 195 (3) of the Constitution, appoint the Registrar of the Council.”.

Question put and amendment agreed to.

Clause 13 as amended ordered to stand part of the Bill.

Clause 14 – Functions of the Registrar

Mr Enu: Mr Speaker, I beg to move, amendment proposed – Subclause (1), paragraph (a), *delete*, as captured by the Winnowing Committee as clause 14.

Mr First Deputy Speaker: Hon Members, the item numbered 13 xiv is clause 12 in the original Bill, and the work done by the Winnowing Committee brings it up to clause 14. So, please let us consider the work of the Winnowing Committee. The proposal is to *delete* the entire clause 12 (a).

Dr Mahama: Mr Speaker, instead of deleting it, I would rather propose we

amend it by replacing the Director-General with the Council. The new rendition would be “The Registrar is answerable to the Council in the performance of function as a Registrar”.

Mr First Deputy Speaker: Well, that is not the original clause 12 (a). So, to get the impulse, we need to move the amendment in item numbered 13 (xiv), (xv) and (xvi) together. So that it will bring you to the clause 14 as it is in the document of the Winnowing Committee. The original (a) states that the Registrar is responsible for the day-to-day administration, which is a function given to the Director-General. That is the proposal for it to be deleted. Do you understand? So, in the new document before us, that has been deleted. So, if Members are going to propose an amendment based on what is now before us, then we must move clause 12 in its entirety. So, Chairman of the Committee, move clause 12 in its entirety.

Mr Enu: Very well, Mr Speaker. I beg to move, Clause 12 – amendment proposed – Subclause (1), paragraph (a), *delete*

Amendment proposed – Subclause (1), paragraph (b), line 1, *delete* “Board” and *insert* “Director-General”.

Amendment proposed – Subclause (1) paragraph (e), line 1, *delete* “Board” and *insert* “Director-General”, as captured by the Winnowing Committee as Clause 14.

Mr First Deputy Speaker: They are all on Page 9 of today's Order Paper. So

now we can propose an amendment on the strength of the functions of the Registrar as in Clause 14.

Dr Mahama: Mr Speaker, I probably would first ask the Attorney-General and Minister for Justice and maybe the Chairman to explain why — the proposed amendment that I am seeking to do was actually considered at the Winnowing Committee and rejected. The original version had the amendment that I am proposing. The original version was to the effect that “The Registrar shall be answerable to the Board”, but it was deleted and replaced with the Director-General. So, if I get the sense of the —

Mr First Deputy Speaker: It is here as (a).

Dr Mahama: I get it, Mr Speaker. I am just saying that if I get the sense why they deleted the Board and replaced same with the Director-General, probably my amendment will be otiose. So, I am just seeking from the Chairman or the Attorney-General and Minister for Justice.

Mr First Deputy Speaker: But if the Director-General is answerable to the day-to-day administration of legal education, and then the Registrar would bypass the Director-General and report directly to the Board, why is he a Director-General?

Dr Mahama: Mr Speaker, I get the difficulty that this may pose, and I agree that it could stand —

Mr First Deputy Speaker: In the original Bill, there was no Director-General. The “Director-General” is a new insertion. So certain functions were given to the Registrar because there was no Director-General. But now that we have a Director-General, some functions are given to the Director-General which can no longer be a function of the Registrar. Other than that, it will be duplication of functions.

Dr Mahama: Mr Speaker, I get it. Even though it is not similar, I agree that we should also look at the University Council. The Registrar for the University is answerable to the Vice-Chancellor. Is that the case? If that is the case, then I am sure we are moving closer. But if the Registrar of the University is answerable to the Governing Board of the University —

Mr First Deputy Speaker: How can you have a Vice-Chancellor of a University, but the Registrar would rather be answerable to the University Council?

Dr Mahama: Mr Speaker, I yield then. That is the symphony of that particular arrangement that I wanted to just be sure of. So, if that is the arrangement there, then I abandon my amendment.

Mr First Deputy Speaker: Yes, but if it is otherwise, it will not augur well. You are there as the Vice-Chancellor of the University, and before you realise, your Registrar is reporting to the University Council. That would be disorderly. Any further proposal?

Dr Asamoah: I think the confusion we have here is because of the issue we could not clear as far as the Director-General of the Council was concerned. Now we are saying that it is the Registrar, who here happens to be reporting to the Director-General of Legal Education and Training, which I had proposed. We have defined Legal Education and Training Council, and now we are saying that we have a Registrar of the Council, and staff to be appointed by the Council. The Director-General is not the Director-General of the Council, but we are rather giving him a different entity. We have already passed that clause and I lost it. So, in that case, we need to have some kind of consistency.

Mr First Deputy Speaker: Well, I do not see any confusion here. I maintain that it is just the nomenclature.

7:23 p.m.

Dr Asamoah: Yes, the nomenclature. We have defined the Council in the interpretation clause as the Council for Legal Education and Training, for which reason we are seeking to cancel the registrar and the other staff to be appointed in the amendment.

Mr First Deputy Speaker: Yes, I understand the point that you are making. You are still insisting that it should be called the Director-General of the Council, not Director-General of Legal Education.

Dr Asamoah: Yes, because now we are dealing with two entities —

Mr First Deputy Speaker: By this particular Bill, we all know that the Director-General of the Council is the Director-General of Legal Education.

Mr Ayariga: Mr Speaker, nowhere did we say the title of the Registrar is Registrar of Council. If you look at the heading, it says: Appointment of Registrar. The title is not Registrar of Council. The same way, Director-General of Legal Education is a brand, so we prefer that the person is called Director-General of Legal Education, not Director-General of Legal Education of the Council. The same way that the Registrar is Registrar, not Registrar of the Council.

In the clause appointing the Registrar, it says: “The Council in accordance with Article 195 of the 1992 Constitution appoint — well, we amended it, but we will have to go back to that later on, even though we have gone past that. This is because Article 195 (3) is talking about tertiary educational institutions, but what we are establishing is not a tertiary educational institution; it is a Regulator. Once it is a regulator it does not come under Article 195 (3), so we have to revisit that issue either at Second Consideration or at a later stage.

Mr First Deputy Speaker: Let us look at Article 195(3). It says:

“The power to appoint persons to hold or act in an office in a body of higher education, research or professional training, shall vest in the council or other governing body of that institution or body.”

Mr Ayariga: That is it. We can have a higher body of education conducting research, we can have a higher body of education involving professional training, but we must establish that it must be a body of higher education, which either conducts research or professional training. But Mr Speaker, I think we can live with that even though it is a Regulator, the Bill is not establishing a university.

Mr First Deputy Speaker: I see your argument.

Mr Ayariga: Yes, the Bill is not establishing a university. Even though there is a point at which we are proposing that we incorporate clauses establishing the Ghana School of Law. If we get to that point, then I think we would be caught by this clause and caught squarely by Article 195(3) of the 1992 Constitution. This is because we are proposing — Clause 77?

Mr First Deputy Speaker: Yes. It states:

“There is established by this Act, the Ghana School of Law as a directorate of the Council.”

Under clause 78: Functions of the Ghana School of Law, paragraph (b):

“offer courses, including remedial courses, for a person who wishes to sit or re-sit the National Bar Examination;”

I will put the question on clause 12 as amended, and now on clause 14. I am

putting the question on the original clause 12, as worked on by the Winning Committee of Parliament, to now be clause 14.

Question put and amendment agreed to.

Clause 14 as amended ordered to stand part of the Bill.

Clause 13, now clause 15 —

Clause 15—Appointment of other Staff of the Council

7:33 p.m.

Mr Darko: Mr Speaker, I believe my earlier amendment in clause 13 is also relevant here, that “the President should be removed so that we put the Council there and then add a sub clause (3) to 195. So that the new rendition shall read:

“The Council shall in accordance with article 195(3) of the constitutional appoint other staff of the Council that are necessary for the efficient and effective performance of the functions of the Council.”

Mr First Deputy Speaker: It is for the consideration of the House. This is consequential.

Question put and amendment agreed to.

Clause 15 as amended ordered to stand part of the Bill.

Clause 16 ordered to stand part of the Bill.

Mr Enu: Mr Speaker, I move the proposed amendment captured in the item numbered xvii, at page 9 of the *Order Paper* as captured by the Winnowing Committee as clause 17.

Mr First Deputy Speaker: Hon Members, the proposal here is to add “loans”, that is, the loans will become (d) before “donations, gifts and grants”. It is for the consideration of the House.

Yes, Hon Appiagyei?

Ms Patricia Appiagyei: Thank you, Mr Speaker.

I have a suggestion that the Council should not accept gifts or donations and if they are only going to—

Mr First Deputy Speaker: Let me deal with the proposed amendment under reference, to add “loans”.

Question put and amendment agreed to.

Mr First Deputy Speaker: Now, on the entire clause 15 which is xvii in the work document. Yes, Hon Appiagyei?

Ms Appiagyei: I have a suggestion that the Council should not take loans or donations. Since they will be giving verdicts, and if they have to do that, then there should be a provision that will indicate that any member with special interests should not be allowed to give donations to compromise the Council with their decisions. So, I believe with

that one, either we insert a provision to indicate clearly that under no circumstance should a gift or donation be accepted from an interested party.

Mr First Deputy Speaker: So, being a former member, if I decide to donate whatever small I have to legal education, if the law precludes them, how do they take that?

Ms Appiagyei: There should be a provision that indicates that the interest of any member or person or body, whose interests are likely to be directly affected by the regulation, licences or disciplinary or adjudicatory functions of the Council, the Council shall not accept any gift or donation from that person. If you are a former member, I do not think you will share that interest. But if you have a case or you have an interest, then once you give out the gift, you will be luring them into—

Mr First Deputy Speaker: What is the nature of the interest you are talking about?

Ms Appiagyei: We are talking about the interest, maybe it is an issue of regulatory licences or disciplinary actions that should be taken against a person or a body.

Mr First Deputy Speaker: Well, let me hear from Hon Anyimadu-Antwi on this.

Mr Anyimadu-Antwi: Mr Speaker, I think that my Hon Deputy Leader has in mind that as much as we want to enrich

the legal education, she would want us to work against the situation where people may influence the system. But here we are talking about the whole Council. So, an individual or institution cannot give a gift and we say that it would have influenced the entire Council. If it is about the Director General receiving grants or loans or gifts or donations, that is a different thing.

Then we can bring these safe clauses to cater for it. But the way it is, I think it is nice and we cannot take gifts and donations from it. Somebody may even decide that in his entire will, he is given everything he has to the Council, and that should be allowed.

Mr First Deputy Speaker: So, Hon Deputy Minority Leader, will you drop the proposed amendment?

Ms Appiagyei: No, Mr Speaker, I still believe that— I am not looking at a situation where a former member is making a donation. I am looking at the situation where the whole Council will be compromised through a particular donation that is being made. *[Interruption]* It will be an influence.

Mr First Deputy Speaker: So, let us say the University of Ghana is an interested party, and the World Bank has donated fresh law books to the University of Ghana. And in your case, the University of Ghana cannot give these books to the Council towards legal education because it is an interested party, they will be accredited to run the LLB.

Ms Appiagyei: I am looking at this rendition, that “the Council shall not accept any gift or donation that compromises or is reasonably perceived to compromise independence, impartiality—

Mr First Deputy Speaker: Who determines the reasonability and impartiality of it?

Ms Appiagyei: It is obviously—You always look at the situation. The condition at that point in time—

Mr First Deputy Speaker: So, who makes that determination? Can I go to court and say that the World Bank has donated towards legal education and that the donation is impartial?

Ms Appiagyei: If I have knowledge of your interest, I think I can actually make that application.

Mr First Deputy Speaker: Well, law is a communicative action and the communication must be clear. Law must be certain. It must not be ambiguous. At the point of making the law, when it will create an interpretational problem, we should avoid it.

Yes, Hon Shaib?

Mr Shaib: I want us to look at it from this angle, and if we still are not aligned, then we can look—So, what we are trying to look at is to say that:

“Funds of the Council shall include:

(a) Monies approved by Parliament;

- (b) Internally generated funds;
- (c) Returns on investment; and
- (d) Donations, gifts and grants provided that the Council shall not accept donations or grants from any person or body whose interests are likely to be directly affected by the regulatory, licencing, disciplinary or adjudicatory functions of the Council”.

Mr First Deputy Speaker: You should be telling me how that determination is going to be made. That is why I am saying that law is a communicative action. It must be clear. It must be certain. It must avoid elements of ambiguity.

Mr Shaib: Mr Speaker, that is the point I am trying to make. I understand that with this rendition we can all work on it and make it clearer. But I am thinking that the moment we leave donations and gifts, and it is a Council that is supposed to govern—

Mr First Deputy Speaker: Yes, because we are not talking about individuals here. We are talking about the whole institution.

Mr Shaib: Which is clear. But, Mr Speaker, you know that the whole institution definitely will have somebody who is heading the institution.

Mr First Deputy Speaker: No, you see, if you go to give something to the

person who is heading the institution, that is a different ballgame. But if you donate to the institution like somebody donating to Parliament of Ghana, that donation is not to the Speaker. It is not to the Clerk to Parliament. So, the Clerk to Parliament going to receive the donation on behalf of the entire Parliament is not personal to him.

Mr Shaib: Yes, but, Mr Speaker, you also know that a donation can be made to the Clerk to Parliament which could influence his decision on the Council.

Mr First Deputy Speaker: Yes, but that one is a donation being made to the Clerk but not to Parliament as an institution.

Mr Shaib: Mr Speaker, so what I am saying is that if you are giving to the institution, which is fair, that institution would—

7:43 p.m.

Mr First Deputy Speaker: My Brother, even the Judiciary receives donations. Ghana Police receives donation. The Military also receives donation. The National Insurance Commission, a regulator, receives donations. Institutional donations differ from individual donations.

So, you, Jerry Ahmed, can be influenced in your decision-making by something being given to you. Do you understand? But if the thing is given to the entire Minority Caucus, how would it

influence the second individual of the caucus?

Ms Appiagyei: Thank you, Mr Speaker. I withdraw my application.

Dr Asamoah: Mr Speaker, my proposal is in reference to the current rendition that was done for the Ghana Scholarship Authority Act. For Clause 17(e), I propose to *delete* the “and” after “gifts”, and *insert* “donation, gifts, grants and any other voluntary contribution made to the council” in line with what was done with the Scholarship Act.

Mr First Deputy Speaker: New rendition?

Dr Asamoah: So, the new rendition will be “...donations, gifts, grants, and any other voluntary contribution made to the Council”.

Mr First Deputy Speaker: Well, donations, gifts, and grants, which one is not voluntary? Yes?

Dr T. A. K. Mahama: Mr Speaker, I remember during the discussion on the Gold Board Act, which he is referencing. It is an Act before this Parliament —

Mr First Deputy Speaker: Are you referencing the Gold Board Act or the Scholarship Act?

Dr T. A. K. Mahama: The Scholarship Act.

Mr First Deputy Speaker: But you are saying Gold Board.

Dr T. A. K. Mahama: The scholarship, Mr Speaker, and we were very clear that there could be gifts, even though gifts could be voluntary, but there are certain things that cannot be categorised as gifts per se, and they are not donations also. For instance, if we decide that the money for the deceased at the Bank of Ghana, part of it should be given to the Council, we cannot term it as gifts per se.

Mr First Deputy Speaker: Which money?

Dr T. A. K. Mahama: For instance, we have money that, according to the Bank of Ghana Act, if a person is deceased, and those monies cannot be traced to the next of kin, those monies are brought to the central chest.

Mr First Deputy Speaker: And you are saying it is not a gift, donation, or grant?

Dr T. A. K. Mahama: I am saying it may not fit within gifts, donations, or grants. That was the reason we made that particular law, unless of course—

Mr First Deputy Speaker: But if it is not a gift, grant, or donation, what is it?

Dr T. A. K. Mahama: That is the reason we say other voluntary contributions.

Mr Speaker, the name other voluntary contribution tells us that it does not fit into this particular category, unless of course—

Mr First Deputy Speaker: Well, for me, I doubt if that is the rendition they agreed upon, but now that we are doing this particular law, by the application of the principles of *ejusdem generis*, if you talk about donations, gifts, and grants, any other that falls within this particular category is captured. Because these are all voluntary in nature. There is none that is compulsory.

Clause 17 ordered to stand part of the Bill.

Clause 18 ordered to stand part of the Bill.

Clause 19—Borrowing Powers

Mr Enu: Mr Speaker, I beg to *move*:

New Clause – Amendment proposed –
Add the following new clause after clause 16: “Borrowing powers

Subject to article 181 of the Constitution and section 76 of the Public Financial Management Act, 2016 (Act 921), the Council may obtain a loan and any other credit facility from a bank or any other financial institution approved by the Minister responsible for Finance.”

Question put and amendment agreed to.

Clause 19 ordered to stand part of the Bill.

Clause 20 is ordered to stand part of the bill.

Clause 21—Annual reports and other reports

Mr Shaib: Mr Speaker, this afternoon, you said that any time we go to a conclave, the kind of decisions we make, we should try to ensure that they are binding. One of the things we wanted to do today was to look at this up to at least Clause 20 and also consider two Statements. One of which is World Radio Day, which is today. We thought that, because it is today, you would respectfully give us the opportunity to take that Statement as well.

Mr First Deputy Speaker: I agree with you, but from 21, you are going to another sectional note. That is the accreditation of universities to offer or provide law practise and training. The new rendition will be: “accreditation of institutions to offer or provide law practice and training”. So, I believe we can deal with 21 and then call it a day. So that when we come next time, we will start at clause 22, which is another sectional note.

Clause 21 ordered to stand part of the Bill.

Mr First Deputy Speaker: Yes, Majority Leader?

7:53 p.m.

Mr Ayariga: Mr Speaker, initially, we had planned to take a Statement today relating to our Colleague, Hon Murtala. During the event following the crash, many Statements were made in the

Chamber. We eulogised him and spoke extensively about him, but we did not make a specific Statement that focuses on him as a person. We noticed the omission on our part as a House. We had a Statement we wanted to take today, but given how late it is, we would rather take it tomorrow.

So, Mr Speaker, I will leave the matter in your hands. We have done more than five hours. So, we are entirely in your hands.

Mr First Deputy Speaker: Hon Members, are we taking the Statement? We have come to the end of the Consideration Stage for today.

Hon Members, what is the pleasure of the House?

Mr Shaib: Mr Speaker, you can hear my people asking for the second shift. But you have done so well; having sat for— Mr Speaker, it is about seven hours now. You have not even had water.

Mr First Deputy Speaker: Hon Anyimadu-Antwi, do not cry for me.

Mr Shaib: Mr Speaker, he has been crying for you.

Mr Speaker, respectfully, is it your pleasure that we have the Statements tomorrow, although the World Radio Day is today, and since the Hon Leader has requested that we should —

Mr First Deputy Speaker: So, I want to abide by the pleasure of the House.

Mr Shaib: Mr Speaker, we are in your hands. We would have waited for the third shift. We were hoping to do the 1-3-3 shift.

Mr First Deputy Speaker: Well, once we are talking about the 24-Hour Economy and I am prepared to work, let us take the Statements.

Mr Shaib: Mr Speaker, it is fine. The 24-Hour Economy is 1-3-3 and not 1-1-3.

So, we are waiting for the second shift.

Mr First Deputy Speaker: If you say that the Managing Director wants to be at post for 24 hours for the Hon Members to run shifts, it does not offend the Bill that we have passed.

Mr Shaib: No, Mr Speaker, it offends the labour laws.

Mr First Deputy Speaker: It does not offend the Bill that we have passed.

Hon Majority Leader, the proposal is to have the House adjourned.

Hon Members, once we have done beyond five hours, the power to adjourn is in the hands of the Speaker.

ADJOURNMENT

The House was adjourned at 7:58 p.m. till Friday, 13th February, 2026 at 2:00 p.m.

Editor's Note

This *Official Report* was adopted by the House on 19th February, 2026.